



CHAPTER cci.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Tramways Act 1870 relating to Ashton-under-Lyne Corporation Tramways Garston Tramway Gorton Urban District Council Tramways Plymouth Corporation Tramways Taunton Tramways and Warrington Corporation Tramways. A.D. 1900.

[6th August 1900.]

WHEREAS under the authority of the Tramways Act 1870 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act annexed : 33 & 34 Vict.
c. 78.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Act and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Tramways Orders Confirmation (No. 4) Act 1900. Short title.

2. The several Orders as amended and set out in the schedule to this Act annexed shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the dates of the same respectively shall be the date of the passing of this Act. Confirmation
of Orders in
schedule.

A.D. 1900.

Protection
of houses of
labouring
class.

3. The Promoters mentioned in the said Orders shall not in the exercise of the powers of this Act or of the said Orders purchase or acquire in any city borough or other urban district or in any parish or part of a parish not being within an urban district ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. If any promoters purchase or acquire any house or houses under the powers of this Act or of the said Orders in contravention of the foregoing provision they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them the expression "house" means any tenement separately occupied by any person or persons.

SCHEDULE.

A.D. 1900.

LIST OF ORDERS.

ASHTON-UNDER-LYNE CORPORATION TRAMWAYS.—Order authorising the Mayor Aldermen and Burgesses of the Borough of Ashton-under-Lyne to construct tramways in their borough.

GARSTON TRAMWAY.—Order authorising the Garston and District Tramways Company Limited to construct a tramway in the urban district of Garston.

GORTON URBAN DISTRICT COUNCIL TRAMWAYS.—Order authorising the Urban District Council of Gorton to construct tramways in their district.

PLYMOUTH CORPORATION TRAMWAYS.—Order authorising the Mayor Aldermen and Burgesses of the Borough of Plymouth to construct additional tramways in their borough.

TAUNTON TRAMWAYS.—Order authorising the construction of tramways in the Borough of Taunton in the County of Somerset.

WARRINGTON CORPORATION TRAMWAYS.—Order authorising the Mayor Aldermen and Burgesses of the Borough of Warrington to construct tramways and for other purposes.

A.D. 1900.

ASHTON-UNDER-LYNE CORPORATION.

*Ashton-
under-Lyne
Corporation.*

*Order authorising the Mayor Aldermen and Burgesses of the
Borough of Ashton - under - Lyne to construct Tramways
in their Borough.*

Preliminary.

Short title.

1. This Order may be cited as the Ashton-under-Lyne Corporation Tramways Order 1900.

Incorporation
of Acts.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order.

Interpretation.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings :

Provided that in this Order—

The expression "the borough" means the borough of Ashton-under-Lyne in the county of Lancaster.

The expression "the Corporation" means the mayor aldermen and burgesses of the borough acting by the council ;

The expression "the tramways" means the tramways and works by this Order authorised ;

The expression "the undertaking" means the undertaking by this Order authorised ;

The expression "mechanical power" includes steam electrical and every other motive power not being animal power ;

The expression "engine" includes motor.

Promoters.

The Promoters.

4. The Corporation shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

Lands.

Lands.

5. The Promoters may—

(a) Subject to the sanction of the Local Government Board and under such conditions as they may prescribe from time to time appropriate and use for any of the purposes of this Order but subject to the provisions (if any) under which such lands were respectively acquired any lands not

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

dedicated to public use from time to time vested in them being part of their corporate estates ; A.D. 1900.

- (b) By agreement from time to time purchase and acquire for the purposes of the undertaking such lands as they may require and may from time to time sell let or dispose of any such lands which may not be necessary for such purposes Provided that all sums received by the Promoters from the sale of such lands or from fines or premiums on leases of the same shall be applied solely in repayment of outstanding loans and that such moneys shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board : *Ashton-under-Lyne Corporation.*

Provided that they shall not at any time hold for such purposes more than five acres of land Provided also that nothing in this Order shall exonerate the Promoters from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon lands appropriated or taken under the powers of this section.

Construction of Tramways.

6. The Promoters may subject to the provisions of this Order—

- (a) Construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as “the deposited plans” and “the deposited sections”) the tramways herein-after described with all proper rails plates sleepers channels junctions turntables turnouts crossings passing-places works and conveniences connected therewith or for the purposes thereof ;
(b) Erect or construct on any lands taken or appropriated under the powers of this Order any offices stables sheds workshops stores waiting-rooms or other buildings yards works and conveniences for the purposes of the undertaking :

Construction of tramways.

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways authorised by this Order will be wholly situate within the borough and are as follows (that is to say)—

Tramway No. 1 (3 furlongs 4·45 chains in length whereof 6·75 chains will be single line and 2 furlongs 7·70 chains will be double line) to be situate in Katherine Street and Cavendish Street commencing by a junction with the existing tramways of the Oldham Ashton and Hyde Electric Tramway Limited in the first mentioned street at a point 5 yards or thereabouts east of Cavendish Street and terminating at the southern boundary of the borough at the centre of Alma Bridge over the River Tame.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 Vict.]
Act, 1900.

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Notwithstanding anything shown on the deposited plans Tramway No. 1 will be laid as single line except in the following places in Cavendish Street where it will be laid as double line—

- (a) Between a point 29 yards or thereabouts from the commencement of the tramway and a point about 88 yards or thereabouts from the northern building line of Bank Street measured in a southerly direction.
- (b) Between the southerly side of the Great Central Railway bridge over Cavendish Street or thereabouts and a point about 55 yards therefrom measured in a southerly direction.

Tramway No. 2 (2 furlongs 6·20 chains in length whereof 1 furlong 8·20 chains will be single line and 8 chains will be double line) to be situate in Katherine Street Henrietta Street and Canterbury Street commencing by a junction with Tramway No. 4 herein-after described in the first mentioned street at a point 8 yards or thereabouts west of Henrietta Street and terminating in Canterbury Street at the northern boundary of the borough.

Notwithstanding anything shown on the deposited plans Tramway No. 2 will be laid as single line except in the following places where it will be laid as double line—

- (a) In Henrietta Street between the points respectively 55 yards or thereabouts north of the northerly building line of Suffolk Street and 4 yards or thereabouts north of the northerly building line of Lennox Street.
- (b) In Henrietta Street and Canterbury Street between the points respectively 45 yards or thereabouts south of Canterbury Street and 44 yards east of Henrietta Street.

Tramway No. 3 (single line 4·90 chains in length) to be situate in Junction Street commencing by a junction with the existing tramway of the Manchester Carriage and Tramways Company at a point 12 yards or thereabouts north of Lennox Street and terminating at the northern boundary of the borough.

Tramway No. 4 (6 furlongs 0·07 chain in length whereof 4 furlongs 4·57 chains will be single line and 1 furlong 5·50 chains will be double line) to be situate in Wellington Road Katherine Street and Whiteacre Road commencing by a junction with the existing tramway of the Oldham Ashton and Hyde Electric Tramway Limited in Wellington Road 13 yards or thereabouts south-east of the Horse and Jockey Inn and terminating in Whiteacre Road at the north-eastern boundary of the borough.

Notwithstanding anything shown on the deposited plans Tramway No. 4 will be laid as single line except in the following places where it will be laid as double line—

- (a) In Wellington Road and Katherine Street from the commencement of the tramway to a point 3·50 chains therefrom.

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

- (b) In Katherine Street and Whiteacre Road between the point 55 yards or thereabouts east of Arlington Street and the north-eastern side of Beaumont Street or thereabouts.
- (c) In Whiteacre Road between the points 56 yards or thereabouts south-west and 21 yards or thereabouts north-east of the centre line of Herries Street.
- (d) In Whiteacre Road between the points 8 yards and 85 yards respectively or thereabouts north-east of Peel Street.

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Tramway No. 5 (3 furlongs 4 chains in length whereof 2 furlongs 4·70 chains will be single line and 9·30 chains will be double line) to be situate in Katherine Street Crickets Lane and Mossley Road commencing by a junction with Tramway No. 4 herein-before described in the first-mentioned street opposite to the westerly building line of Whiteacre Road or thereabouts and terminating in Mossley Road at the north-eastern boundary of the borough of Ashton-under-Lyne at a point 85 yards or thereabouts north-east of Gordon Street.

Tramway No. 5 will be laid as single line except in the following places where it will be laid as double line—

- (a) In Katherine Street and Crickets Lane between the commencement of the tramway and a point 51 yards or thereabouts eastwards thereof.
- (b) In Mossley Road between the points 321 yards and 398 yards respectively or thereabouts from the commencement of the tramway.
- (c) In Mossley Road between the westerly side of Gordon Street and a point 77 yards eastwards therefrom or thereabouts.

Tramway No. 6 (3 furlongs 1 chain in length whereof 1 furlong 3·26 chains will be single line and 1 furlong 7·74 chains will be double line) to be situate in Market Street Old Street St. Michael's Square Scotland Street and Whitelands commencing by a junction with the existing tramway of the Manchester Carriage and Tramways Company in Market Street on the northern building line of Old Street or thereabouts and terminating in Whitelands at the southern boundary of the borough in the centre of the bridge over the River Tame.

Notwithstanding anything shown on the deposited plans Tramway No. 6 will be laid as single line except in the following places where it will be laid as double line—

- (a) In Old Street St. Michael's Square and Scotland Street between the western building line of St. Michael's Square or thereabouts and a point 20 yards or thereabouts south of the southern building line of Stamford Street.
- (b) In Scotland Street and Whitelands between the points 137 yards or thereabouts north of the centre line of the Great Central Railway Company's bridge over Scotland Street and the southern side of Tim Bobbin Inn on the northerly side of Conduit Street.

Provided that so much of Tramway No. 6 as shall be constructed in Old Street between the easterly side of George Street and the westerly side of the

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
Act, 1900.

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For the
protection of
the Lancashire
County
Council.

Old Dog Inn shall not be opened for public traffic until the road has been widened to the extent shown on the deposited plans.

7. For the protection of the county council of Lancashire (herein-after referred to as "the county council") the following provisions shall apply and have effect (that is to say)—

(1) In constructing the tramway upon or over any bridge which is repairable by the inhabitants of the county of Lancaster or of any hundred therein or any parts of the approaches thereto the Corporation shall not alter or interfere with the structure of such bridge or approaches unless such alteration or interference with the construction of such bridge or approaches be absolutely necessary for the purpose of constructing the tramway and in the event of any such alteration or interference the Corporation shall together with the prescribed notice submit to the county council detailed drawings and specifications showing the proposed work as affecting such bridge or approaches and the Corporation shall so construct and maintain the tramway in the road over such bridge and forming the approaches thereto as not to injuriously affect such bridge or approaches and in the event of any injury being occasioned to such bridge or approaches or any part or parts thereof respectively by the construction of the tramway on or over the same (whether such injury shall occur either during or after construction or in affecting the maintenance of the tramway) the county council after seven days' written notice to the Corporation except in cases of emergency of their intention so to do may restore such bridge and approaches or the part or parts thereof which may be injured to as good a state as they were in before such injury was occasioned at the expense of the Corporation and the Corporation shall repay to the county council all reasonable expenses which they may be put to in restoring such bridge and in maintaining and repairing so much of the road over such bridge and approaches as the Corporation are liable to repair under this Order and the county council may recover from the Corporation all such expenses so due as aforesaid.

(2) In the event of mechanical power being used on that portion of the tramway which is laid on any such bridge or approaches the county council may execute such works as may be agreed between them and the Corporation (or in case of difference between them as may be determined by the Board of Trade) necessary for the strengthening of the fabric of such bridge provided such strengthening is needed for and by reason of the tramway apart from the ordinary traffic on the road in question and the county council may execute all such agreed works at the expense of the Corporation and the county council may recover from the Corporation all moneys reasonably expended by them in the execution of such works as aforesaid. If it becomes necessary for effecting such strengthening that the working of any portion of the tramway be wholly or in part stopped or delayed and the county council give the Corporation fourteen clear days' notice in writing requiring such stoppage or delay the working of such portion of the tramway shall be stopped or delayed accordingly but only

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for so long as may be necessary for effecting such strengthening and the county council shall not be liable for any claims damages or expenses in respect of such stoppage or delay.

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(3) If any such bridge as aforesaid upon or along which the tramway is laid be altered widened or rebuilt by the county council the county council may require the Corporation to alter the tramway in such manner as the circumstances of the case may reasonably require. Provided that it shall be lawful for the Corporation to contribute such sum as may be mutually agreed upon between the Corporation and the county council towards the expenses of altering widening or rebuilding any of such bridges as aforesaid.

(4) The Corporation shall not without the consent in writing of the county council (which consent shall not be unreasonably withheld) place erect or attach any post or other support for any wire on or to any such bridge as aforesaid and shall on receiving three months' notice in writing (which notice shall not be given unreasonably) remove any post or support which shall be so placed erected or attached as aforesaid.

(5) For the purpose of this section the expression "the tramway" shall include posts cables and all other electrical appliances connected with or used with the tramway lines.

(6) The Promoters shall at their own expense pave so much of any main road whereon or over any tramways authorised by this Order are laid as lies between the rails and as extends 18 inches beyond the rails of and on each side of such rails with granite cubes or setts or such other paving as the surveyor of the county council may reasonably approve.

(7) Any matter in difference under this section between the Promoters and the county council shall unless otherwise agreed be referred (save where by this section otherwise provided) to the Board of Trade whose decision shall be final or if the Board of Trade think fit to the arbitration of a person nominated by the Board of Trade.

8. For the protection of the county council of the county palatine of Chester (in this section referred to as "the county council") the following provisions shall unless otherwise agreed apply and have effect (that is to say)—

For the
protection of
the Cheshire
County
Council.

(1) The Promoters shall at their own expense pave so much of the roadway upon Dukinfield Bridge whereon Tramway No. 6 is laid as lies between the rails and as extends 18 inches beyond the rails of and on each side of such tramway with granite cubes or setts to the satisfaction of the county council or with such other paving as the county council may reasonably approve.

(2) In constructing the said tramway upon such bridge the Promoters shall not alter or interfere with the structure of such bridge or of the approaches thereto unless such alteration or interference with the construction of such bridge be absolutely necessary for the purpose of constructing such tramway and in the event of any such alteration or interference the Promoters shall together with the notice required in such cases by section 26 of the Tramways Act 1870 submit to the county council detailed drawings and specifications showing the proposed work

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as affecting such bridge or approaches and if any difference arise between the Promoters and the county council as to such alteration or interference or the necessity therefor the same shall be left for the decision of the Board of Trade and the Promoters shall so construct and maintain such tramway in the road upon such bridge as not to injuriously affect such bridge and in the event of any injury being occasioned to such bridge or any part thereof by the construction of such tramway on the same (whether such injury shall occur either during or after construction or in effecting the maintenance of the tramway) the county council may restore such bridge or the part which may be injured to as good a state as it was in before such injury was occasioned at the expense of the Promoters and the Promoters shall recoup to and indemnify the county council against all reasonable expenses which they may pay or be put to in restoring such bridge and in maintaining and repairing so much of the road over such bridge as the Promoters are liable to maintain and keep in good condition and repair under the 28th section of the Tramways Act 1870 and the county council may recover from the Promoters all such expenses so due as aforesaid in the same manner as any simple contract debt of the like amount may be recovered.

- (3) In case mechanical power is used on the said tramway laid on such bridge as aforesaid the county council may execute such works as may in the opinion of their engineer and of the engineer of the Promoters (or in the case of difference between them of an engineer to be appointed by the Board of Trade) be necessary for strengthening the fabric of such bridge and if such strengthening is needed for and by reason of the tramways apart from the ordinary traffic on such bridge the county council may execute all such works in all things at the expense of the Promoters and the county council may recover from the Promoters in manner aforesaid all moneys reasonably expended by them in the execution of such works as aforesaid. If it becomes necessary for effecting such strengthening that the working and user of such tramway be wholly or in part stopped or delayed and the county council give the Promoters fourteen clear days' notice in writing requiring such stoppage or delay the working and user of such tramway shall be stopped or delayed accordingly but only for so long as may be absolutely necessary for effecting such strengthening and the county council shall not be liable for any compensation claims demands damages costs or expenses for or in respect of such stoppage or delay.
- (4) The Promoters shall not without the consent in writing of the county council (which consent shall not be unreasonably withheld) place erect or attach any post or other support for any wire on or to such bridge as aforesaid and shall on receiving three months' notice in writing (which notice shall not be given unreasonably) remove any post or support which shall at any time be so placed erected or attached as aforesaid.
- (5) Nothing herein contained shall tend to lessen or control any right power or authority now vested in the county council and the county council of Lancashire (both of which councils are hereinafter called "the county

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councils") for widening altering or rebuilding the said bridge and the approaches thereto repairable by the inhabitants of the said counties respectively but all such rights powers and authorities shall remain in as full force as if this Order had not been made and confirmed and the county councils shall not be liable to make any compensation whatever for any damage or injury to the tramway by the altering or rebuilding of such bridge and approaches thereto Provided that in widening altering or rebuilding such bridge or the approaches thereto nothing shall be done to impede or interfere with the tramway for any greater length of time or in any other manner than may be necessary for the execution of the works and before commencing such widening alteration or rebuilding fourteen days' notice thereof shall be given by the county councils to the Promoters and the county councils shall afford to the Promoters all necessary and reasonable temporary facilities for enabling them to continue the traffic on their tramways during such alteration or rebuilding.

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Corporation.*

(6) If such bridge or approaches be widened altered or rebuilt by the county councils the county councils may require the Promoters at their own expense to alter such tramway in such manner as the circumstances of the case may reasonably require provided that in case of any difference between the county councils and the Promoters as to such widening alteration or rebuilding the same shall be settled in manner hereinafter mentioned.

(7) Any matter in difference under this section which arises between the Promoters and the county councils or either of them or any other person shall unless otherwise agreed be referred (save where by this section otherwise provided) to the Board of Trade whose decision shall be final or if the Board of Trade think fit to the arbitration of a person nominated by the Board of Trade.

9. For the protection of the Great Central Railway Company (in this section referred to as "the company") the following provisions shall apply and have effect—

For the pro-
tection of the
Great Central
Railway
Company.

(1) All works which may be necessary in constructing and maintaining any of the tramways on over or under any bridge or works of the company shall be constructed and maintained in all things at the expense of the Promoters and to the reasonable satisfaction of the principal engineer of the company or in case of difference of an engineer to be appointed by the Board of Trade on the application of the company or the Promoters.

(Superinten-
dence of works
affecting
railways, etc.)

(2) Before commencing any works on over or under any bridge or the approaches thereto or other work of the company the Promoters shall give fourteen days' notice in writing to the company of their intention to execute such works and such notice shall be accompanied by a plan and specification showing the nature and extent of the intended works.

(Notice of
intention to
execute
works.)

(3) The Promoters shall not in any way vary alter or interfere with the structure of any bridge carrying any road over or under any railway or canal of the company or of the approaches thereto and they shall so construct

(Structure of
bridges.)

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 Vict.]
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(Injury to
bridges and
repair of roads
over same.)

(Suspension of
tramway traffic
during altera-
tions in bridges
widening of
railways &c.)

(Strengthening
of bridges
necessitated by
mechanical
traction.)

maintain and use the tramways on over or under such bridge and the approaches thereto as not injuriously to affect the same. Provided that whenever any of the said tramways on either side of any bridge to which this sub-section applies is a single line there shall only be a single line over such bridge and no turnouts or passing-places shall be constructed thereon.

(4) In the event of any injury being caused to any such bridge or approaches or other work by the construction maintenance repairing user or removal of any of the tramways the company may at the expense of the Promoters restore such bridge or approaches or other work or the part or parts thereof which may be injured to as good a state and condition as they were in before such injury was occasioned and the Promoters shall indemnify the company against all sums costs and expenses which they may pay or be put to in repairing and maintaining so much of the road over such bridge and approaches as the Promoters are liable to maintain and repair under section 28 of the Tramways Act 1870 and the company may recover from the Promoters all such sums costs and expenses by all and the same means as any simple contract debt of like amount may be recovered.

(5) Whenever and so often as the company shall require to widen lengthen strengthen reconstruct alter or repair any such bridge or approaches or to widen or alter their railways or canals or to lift or support any such bridge or approaches owing to the subsidence thereof caused by the minerals thereunder having been or being worked or gotten and it shall be necessary for effecting any of such purposes that the working and user of any of the tramways over such bridge or approaches shall be wholly or partly stopped up or delayed or that such tramways shall be temporarily diverted and be wholly or in part taken up or removed and shall except in cases of emergency give to the Promoters fourteen clear days' notice in writing requiring such stoppage delay or diversion taking up or removal the working and user of such tramways shall be stopped or delayed or such tramways shall be diverted or taken up or removed accordingly at the expense of the Promoters and under the superintendence of their engineer (if such engineer shall give such superintendence) but only for so long as it may be absolutely necessary for effecting such purpose and the company shall not be liable for any compensation claims demands damages costs and expenses for and in respect of such stoppage or delay or in any way relating thereto.

(6) In case it shall be found that any such strengthening is necessary owing to the carriages or other vehicles on any of the tramways being or being intended to be moved by mechanical power such strengthening shall be effected in all things at the expense of the Promoters who shall also pay to the company all additional expenses which they may incur or be put to in effecting any such widening lengthening strengthening reconstructions alterations repairs lifting or supporting by reason of the existence of the tramway so passing or any of the works connected therewith the amount of such expenditure to be recoverable as aforesaid by the company from

the Promoters by all and the same means as any simple contract debt of like amount may be recovered.

(7) In the event of the tramways being worked by electricity on the overhead system no stays posts wires or other apparatus shall without the previous consent in writing of the company be attached to any bridge or other work of the company.

(Overhead
traction plant.)

(8) Any matter in difference under this section between the Promoters and the company shall unless otherwise agreed be referred (save where by this section otherwise provided) to the Board of Trade whose decision shall be final or if the Board of Trade think fit to the arbitration of a person nominated by the Board of Trade.

(Settlement of
differences.)

10. For the protection of the Lancashire and Yorkshire Railway Company (in this section called "the company") the following provisions shall unless otherwise agreed between the Promoters and the company be observed and have effect (that is to say)—

For the pro-
tection of the
Lancashire and
Yorkshire
Railway Com-
pany.

(1) In this section the word "apparatus" includes posts brackets electric conductors wires apparatus subways tunnels cables tubes and openings and any similar appliances to be used as or for the purposes of a motive power for the carriages running on the tramways and includes also any excavations channels and pipes for the purpose of such apparatus.

(2) Where any tramway by this Order authorised or any tramway on or in connexion with which any apparatus is to be constructed or used is laid along a road which is carried by means of a bridge over any railway of the company the Promoters shall so construct maintain and use the said tramway and apparatus as not to alter or interfere with the structure of any such bridge or of the approaches thereto unless such alteration or interference be absolutely necessary for the purpose of constructing the tramways.

(3) In the event of any such alteration or interference the Promoters shall together with the notice required in such cases by section 26 of the Tramways Act 1870 submit to the company for their reasonable approval plans sections and specifications showing the proposed work as affecting the said bridge and the materials to be used and the Promoters shall so construct and maintain the tramway as not to injuriously affect the stability of the said bridge or the approaches thereto Provided that if the company do not within twenty-one days after such submission signify in writing their disapproval of such plans sections and specifications they shall be deemed to have approved thereof.

(4) In the event of any injury being caused to any such bridge or the approaches thereto by the construction maintenance repairing user or removal of the tramways or apparatus the company may at the expense in all things of the Promoters forthwith in case of emergency and in other cases after giving seven clear days' notice in writing of their intention so to do restore such bridge and approaches or the part or parts thereof which may be so injured to as good a state and condition as they were in before such injury was occasioned.

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- (5) All works which may be necessary in constructing and maintaining the tramways or apparatus over any such bridge and the approaches thereto shall be constructed and maintained in all things at the expense of the Promoters and under the superintendence if the same be given and to the reasonable satisfaction of the engineer of the company and in accordance with the approved plans sections and specifications.
- (6) In case it shall become necessary in consequence of the existence or user of the tramways or apparatus to strengthen the fabric of any such bridge the company may after giving to the Promoters seven clear days' notice thereof execute such works as may be necessary but in all things at the expense of the Promoters.
- (7) If it shall become necessary for effecting such strengthening that the working and user of any portion of the tramways shall be wholly or in part stopped or delayed and the company shall (except in cases of emergency when they shall give the longest notice practicable) give the Promoters fourteen days' notice in writing requiring such stoppage or delay the working or user of such portion of the tramways shall be stopped or delayed accordingly but only for so long as may be absolutely necessary for effecting such strengthening and the company shall not be liable for any compensation claims demands damages costs or expenses for or in respect of such stoppage or delay.
- (8) The sleepers and other materials forming the sub-structure of the tramways where the same cross any such bridge over the railway or are laid along the approaches thereto shall subject to the provisions of this section be such as shall be reasonably approved of by the company.
- (9) No apparatus shall be affixed or attached to any house building or property belonging to the company or to any bridge belonging to or maintainable or repairable by the company without the consent in writing of the company.
- (10) Whenever and so often as the company shall require under their existing powers to lengthen strengthen reconstruct alter or repair any bridge over which any tramway of the Promoters is laid or the approaches thereto and they shall find it necessary for effecting any of such purposes that the working and user of any of the said tramways over any such bridge or approaches shall be wholly or partly stopped or delayed or that the tramways or any apparatus connected therewith shall be wholly or in part temporarily diverted taken up or removed and shall except in cases of emergency (when they shall give the longest notice practicable) give to the Promoters fourteen days' notice in writing requiring such stoppage delay or diversion taking up or removal the working or user of the tramways shall be stopped or delayed or the tramways or apparatus shall be diverted or taken up or removed accordingly by and at the expense in all things of the Promoters and under the superintendence of the engineer of the company (if such engineer shall give such superintendence) but only for so long as may be necessary for effecting such purpose and the company shall not be liable for any compensation claims demands damages

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costs and expenses for or in respect of such stoppage or delay or in any way relating thereto. In cases of emergency or in other cases if the Promoters after such notice make default in diverting taking up or removal of any such tramway or apparatus the company may at the expense of the Promoters effect such diversion taking up or removal.

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(11) All moneys payable to the company by the Promoters under the provisions of this section shall be recoverable by all and the same means as any simple contract debt of like amount is recoverable.

(12) Any matter in difference under this section between the Promoters and the company shall unless otherwise agreed be referred (save where by this section otherwise provided) to the Board of Trade whose decision shall be final or if the Board of Trade think fit to the arbitration of a person nominated by the Board of Trade.

11. The Promoters shall not in constructing the tramways cross or make any junction or connection with any of the tramways belonging to the Manchester Carriage and Tramways Company unless and until they shall in pursuance of their statutory powers have purchased the undertaking of the said company authorised by the Manchester Suburban Tramways Act 1879 and the Manchester Carriage and Tramway Company Act 1880 or failing such purchase without the consent of the said company in writing and then only on such terms and conditions as may be mutually agreed.

For protection
of the Manches-
ter Carriage
and Tramways
Company.

12.—(1) Before interfering with the tramways or works of the Oldham Ashton and Hyde Electric Tramway Limited (in this section called "the company") including any posts wires or works belonging to or used by the company for or in connexion with the transmission of electrical energy necessary for effecting the junction authorised by this Order with tramways authorised by the Oldham Ashton-under-Lyne Hyde and District Electric Tramways Order 1896 plans shall be submitted to and reasonably approved by the company and such junction shall be made under the supervision if the same be given and to the reasonable satisfaction of the engineer to the company.

For protection
of the Oldham
Ashton and
Hyde Electric
Tramway
Limited.

(2) Any matter in difference under this section between the Promoters and the company shall unless otherwise agreed be referred to the Board of Trade whose decision shall be final or if the Board of Trade think fit to the arbitration of a person nominated by the Board of Trade.

13.—For the protection of the Ashton-under-Lyne and Dukinfield Bridge Company (in this section referred to as "the company") the following provisions shall unless otherwise agreed between the Promoters and the company have effect (that is to say)—

For protection
of Ashton-
under-Lyne
and Dukinfield
Bridge
Company.

(1) Notwithstanding anything in this Order contained no part of the Tramway No. 1 by this Order authorised and constructed over or upon the Alma Bridge of the company over the River Tame shall be used unless and until a tramway or light railway shall have been constructed in the borough of Dukinfield joining the said Tramway No. 1 upon the said bridge and then only for the purpose of a through service of carriages between the borough and the said borough of Dukinfield.

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(2) No works shall be executed by the Promoters under the powers of this Order over or upon the said bridge unless and until a plan of the same shall have been submitted to and approved in writing by the company or (in the event of difference between the Promoters and the company) unless and until a plan of the same has been approved by an arbitrator nominated by the Board of Trade.

(3) The carriages used on such portion of the tramways as may be constructed over or upon the said bridge shall not be moved by steam power.

(4) Every carriage used on the tramways shall be deemed to be included in the expression "carriage" as used in the Ashton-under-Lyne and Dukinfield Bridge Act 1854 and the company may in respect thereof demand and take the tolls by that Act authorised and exercise the several powers in relation to tolls by that Act conferred.

Gauge and
width of
carriages.

14. The tramways shall be constructed on a gauge of 4 feet 8½ inches or such other gauge as may from time to time be determined by the Board of Trade on the application of the Promoters. Provided always that in the event of the tramways being constructed on a less gauge than 4 feet 8½ inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramways beyond the outer edge of the wheels of such carriage shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed 6 feet 6 inches in width or such other width as may from time to time be prescribed by the Board of Trade.

Provisions as
to construction
of tramways.

15. In addition to the requirements of section 26 of the Tramways Act 1870 the Promoters shall lay before the Board of Trade a plan showing the proposed mode of constructing laying down maintaining or renewing the tramways and a statement of the materials intended to be used therein and the Promoters shall not commence the construction laying down maintenance or renewal of any of the tramways or part of any of the tramways respectively except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement.

Rails of
tramways.

16. The rails of the tramways shall be such as the Board of Trade may approve.

Penalty for not
maintaining
rails and road
in good
condition.

17. The Promoters shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Promoters at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues. In case it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the borough that the Promoters have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think

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fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Promoters to such penalty or penalties in respect thereof as is or are by this section imposed.

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under-Lyne
Corporation.*

18. If the Promoters or any other road authority hereafter alter the level of any road along or across which any part of the tramways is laid or authorised to be laid the Promoters may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Tramways to
be kept on
level of surface
of road.

19. The Promoters may with the consent of the Board of Trade lay down double lines in lieu of single or single lines in lieu of double or interlacing lines in lieu of double or single lines on any of the tramways and may with the like consent subject in places where the Promoters may not be the road authority to the approval of that authority alter the position in the road of any of the tramways or any part thereof respectively Provided that the uppermost surface thereof shall be on a level with the surface of the road. Provided further that in the exercise of the powers of this section no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Promoters within three weeks after receiving from the Promoters notice of their intention express their objection thereto.

Alteration of
tramways.

20. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Promoters shall if and where required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by the means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Cross-overs to
be constructed
in certain
cases.

21. The Promoters may subject to the provisions of this Order from time to time make maintain alter and remove all such cross-overs passing-places sidings loops triangles junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or any of them or for facilitating the traffic of the roads in which the same are laid or for providing access to any stables carriage-houses sheds or works of the Promoters or for effecting junctions with any tramways but in places where the Promoters may not be the road authority the same shall only be made subject to the approval of the road authority Provided that in the construction of any such works no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners

Additional
cross-overs &c.
may be made
where
necessary.

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A.D. 1900. or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Promoters within three weeks after receiving from the Promoters notice of their intention express their objection thereto.

Ashton-under-Lyne Corporation.

Temporary tramways may be made when necessary.

22 Where by reason of the execution of any work affecting the surface or soil of any road along which the tramways are laid it is in the opinion of the Promoters necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Promoters may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued subject in places in which the Promoters may not be the road authority to the approval of the road authority and to such regulations as that authority may make.

Application of road materials excavated in construction of works.

23. Any paving metalling or material excavated by the Promoters in the construction of any works under the authority of this Order from any road under their jurisdiction or control shall absolutely vest in and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit Provided that the Promoters shall not interfere with any metalling or material forming part of the undertaking of the Manchester Carriage and Tramways Company authorised by the Manchester Suburban Tramways Act 1879 and the Manchester Carriage and Tramway Company Act 1880 unless and until they shall in pursuance of their statutory powers have purchased the said undertaking authorised by the said last-mentioned Acts.

Tramways not to be opened until certified by Board of Trade.

24. The tramways shall not be opened for public traffic until the same have been inspected and certified to be fit for such traffic by the Board of Trade.

Motive Power.

Provisions as to motive power.

25. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade.
- (2) The Board of Trade shall make regulations (in this Order referred to as the "Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramways and for regulating the use of electrical power.
- (3) The Promoters or any company or person using any mechanical power on the tramways contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof.
- (4) The Board of Trade if they are of opinion—
 - (a) That the Promoters or such company or person have or has made default in complying with the provisions of this Order or of the

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Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(b) That the use of mechanical power as authorised under this Order is a danger to the passengers or the public;

may by order either direct the Promoters or such company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Promoters or such company or person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

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under-Lyne
Corporation.*

26. For the purpose of working any of the tramways by mechanical power the Promoters and their lessees subject to the provisions of this Order (and as to the lessees subject to the terms of their lease) may construct maintain and use stations for generating electrical power with all necessary or proper machinery dynamos engines buildings works and conveniences and may place construct erect lay down make and maintain on above or below the surface of any street or road posts brackets electric conductors wires apparatus subways tunnels cables tubes and openings and may with the consent of the owners and occupiers of any houses and buildings affix to such houses or buildings and maintain brackets rosettes electric conductors wires and apparatus.

Works for
applying
mechanical
power.

27. All works to be executed by the Promoters or their lessees in any road for working the tramways by mechanical power in pursuance of the powers of this Order shall be deemed to be works of a tramway subject in all respects (save as by this Order otherwise expressly provided) to the provisions of section 30 of the Tramways Act 1870 as if they had been therein expressly mentioned.

Mechanical
power works
to be subject
to section 30
of Tramways
Act 1870.

28. Subject to the provisions of this Order the Board of Trade may make byelaws with regard to any part of the tramways upon which mechanical power may be used for all or any of the following purposes (that is to say):—

Byelaws.

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages:

For regulating the emission of smoke or steam from engines used on the tramways:

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety:

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages:

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

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Amendment of
the Tramways
Act 1870 as to
byelaws by
local authority.

Special pro-
visions as to
use of
electrical
power.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

29. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaw sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which engines are to be driven or propelled on the tramways under the authority of this Order but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

30. The following provisions shall apply to the use of electrical power under this Order unless such power is entirely contained in and carried along with the carriages—

- (1) The Promoters shall employ either insulated returns or uninsulated metallic returns of low resistance.
- (2) The Promoters shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus.
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return.
- (4) The Promoters shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Promoters either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking.
- (5) At the expiration of two years from the passing of the Act confirming this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire

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line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents.

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(6) If any difference arises between the Promoters and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be.

(7) The expression "the Promoters" in this section shall include their lessees and any person owning working or running carriages over any tramways of the Promoters.

31.—(A) Notwithstanding anything in this Order contained if any of the works authorised to be executed by this Order involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

For protection
of the
Postmaster-
General.

(B) In the event of any of the tramways being worked by electricity the following provisions shall have effect—

(1) The Promoters shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by Her Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. If any question arises as to whether the Promoters have constructed their electric lines or other works or work their undertaking in contravention of this subsection such question shall be determined by arbitration and the Promoters shall be bound to make any alterations in or additions to their system which may be directed by the arbitrator.

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking of the Promoters the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection.

(3) (a) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs or the laying of lines crossing the line of the Postmaster-General at right angles

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at the point of shortest distance and so continuing for a distance of six feet on each side of such point) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work :

(b) Any difference which arises between the Postmaster-General and the Promoters or their agents with respect to any requirements so made shall be determined by arbitration.

- (4) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues.
- (5) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of the act or execution of the work was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reasons for doing or executing the same without previous notice.
- (6) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work.
- (7) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order.
- (8) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882.
- (9) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act.
- (10) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid.

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(11) In this section the expression "the Promoters" includes their lessees and any person owning working or running carriages over the tramways (or any part thereof) of the Promoters.

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Corporation.*

Traffic on Tramways.

32. The tramways may be used for the purpose of conveying passengers animals goods minerals and parcels.

Traffic upon
tramways.

33. The Promoters' lessees shall not be bound to carry unless they think fit any animals goods minerals or parcels other than passengers' luggage not exceeding twenty-eight pounds in weight.

Promoters'
lessees not
bound to carry
animals goods
&c.

Rates.

34. The Promoters' lessees may demand and take for every passenger travelling upon the tramways or any part thereof including every expense incidental to such conveyance any rates or charges not exceeding one penny per mile (and for this purpose the fraction of a mile beyond an integral number of miles shall be deemed a mile) but in no case shall the Promoters' lessees be bound to charge a less sum than twopence.

Passengers'
fares.

35. The Promoters or any person working or using the tramways shall not take or demand on Sunday or any public holiday any higher rates or charges than those levied by them on ordinary week-days.

As to fares on
Sundays or
holidays.

36. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof Provided that all such personal luggage be carried by hand and at the responsibility of the passenger and do not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

Passengers'
luggage.

37.—(1) The Promoters' lessees at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Promoters' lessees in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

Cheap fares
for labouring
classes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Promoters' lessees to provide such service as may appear to the Board to be reasonable.

(3) The Promoters' lessees shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

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Rates and
charges for
animals goods
&c.

Payment of
rates.

Periodical
revision
of tolls.

38. The Promoters' lessees may demand and take in respect of any animals goods minerals or parcels conveyed by them on the tramways including every expense incidental to such conveyance any rates or charges not exceeding the rates and charges specified in the schedule to this Order annexed subject to the regulations in that behalf therein contained.

39. The rates and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Promoters' lessees may by notice to be annexed to the list of rates and charges appoint.

40. If at any time after three years from the opening for public traffic of the tramways or any portion of the tramways or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the Promoters or by their lessees or by twenty inhabitant ratepayers of the borough that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if such referee reports that it has been proved to his satisfaction that all or any of the rates or charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Order authorised Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Promoters or their lessees.

Miscellaneous.

Power to
Corporation to
work tram-
ways.

41. Notwithstanding anything in the Tramways Act 1870 to the contrary the Corporation may place and run carriages on and may work and may demand and take rates and charges in respect of the tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks horses harness engines machinery apparatus steam cable electrical and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the said tramways by animal or mechanical power and in such case the several provisions in this Order contained relating to the working of the tramways and the taking of rates and charges therefor shall extend and apply mutatis mutandis to and in relation to the Corporation and the Corporation may work such tramways and demand and recover such rates and charges accordingly but nothing in this section shall empower the Corporation to construct any station for generating electrical power nor to create or permit a nuisance.

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42. The regulations authorised by the Tramways Act 1870 to be made by the Promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the Corporation be made by the Corporation alone.

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Corporation.*
Regulations.

43. The Promoters may with the consent of the Board of Trade from time to time but subject to the provisions of this Order—

Working
agreements.

(a) enter into and fulfil contracts and agreements with any person or local authority authorised to enter into such contracts for and in relation to the construction maintenance or working of the whole or any part of the tramways :

(b) enter into and carry into effect contracts and agreements with any person or local authority owning or lawfully working or using any tramways for and in relation to the interchange accommodation and forwarding of carriages passengers and traffic on from or to any of such tramways on to or from the tramways or any of them and for and in relation to the user by the contracting parties or any or either of them of the whole or any part of their respective tramway undertakings or of any or either of them respectively and to the fixing collecting and apportionment of rates charges and other receipts ; and

(c) confirm any such contracts and agreements which may have been entered into before the confirmation of this Order.

44. All orders regulations and byelaws made and consents and certificates given by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board and when purporting to be so signed the same shall be deemed to be duly made in accordance with the provisions of this Order and to be orders and regulations within the meaning of the Documentary Evidence Acts 1868 and 1882 and may be proved accordingly.

Orders &c. of
the Board of
Trade.

45. The Promoters may include in any mortgage of the local rate made by them under section 20 of the Tramways Act 1870 the moneys coming to them out of the rents reserved under any lease made under the authority of this Order and the rates charges and sums authorised to be taken or received by them under the provisions of this Order.

Mortgages to
include rents
and rates.

46. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction Acts.

Recovery of
penalties.

47. Sections 246 and 250 of the Public Health Act 1875 shall apply to the audit of accounts of the receipts and expenditure of the Promoters and their officers with respect to the tramways as if such accounts related to receipts and expenditure under that Act.

Audit of
accounts.

48. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 is hereby incorporated with this Order and in construing that section for the purposes of this Order the expression "this Act" where used in that section shall mean this Order.

Protection of
local authority.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
Act, 1900.

A.D. 1900.

*Ashton-
under-Lyne
Corporation.*

Form and
delivery of
notices.

49. With respect to notices and to the delivery thereof by or to the Promoters the following provisions shall have effect (that is to say) —

- (1) Every notice shall be in writing and if given by the Promoters or by any local or road authority or company shall be signed by their clerk or secretary.
- (2) Any notice to be delivered by or to the Promoters to or by any body or any company or corporation may be delivered by being left at the principal office of such body company or corporation or at the office of the clerk to the Promoters as the case may be or by being sent by post in a registered letter addressed to their respective clerk or secretary at their principal office or to the clerk to the said Promoters.

Provisions as
to arbitration.

50. Where under the provisions of the Tramways Act 1870 and this Order any matter in difference is referred to the arbitration of any person nominated by the Board of Trade the provisions of the Arbitration Act 1889 shall apply to every such arbitration and the decision of the arbitrator shall be final and conclusive and binding on all parties and the costs of and incidental to the arbitration and award shall if either party so require be taxed and settled as between the parties by any one of the taxing masters of the High Court and such fees may be taken in respect of the taxation as may be fixed in pursuance of the enactments relating to the fees to be demanded and taken in the offices of such masters and all those enactments including the enactments relating to the taking of fees by means of stamps shall extend to the fees in respect of the said taxation.

Saving for
general Acts.

51. Nothing in this Order contained shall exempt the Promoters or any person using the tramways or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of rates and charges authorised by this Order.

SCHEDULE.

RATES AND CHARGES FOR ANIMALS GOODS &C.

			Per mile.	
<i>Animals.</i>			s.	d.
For every horse mule or other beast of draught or burden -	per head		0	4
For every ox cow bull or head of cattle -	-	"	0	3
For every calf pig sheep or other small animal -	-	"	0	1½

Goods and Minerals.

For all coal coke culm charcoal cannel limestone chalk lime salt sand
fireclay cinders dung compost and all sorts of manure and all
undressed materials for the repair of public roads or highways
per ton 0 2

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

	Per mile.	A.D. 1900.
	<u>s. d.</u>	<u>Ashton-under-Lyne Corporation.</u>
For all iron iron-ore pig-iron bar-iron rod-iron sheet-iron hoop-iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought iron not otherwise specifically classed herein and for heavy iron castings including railway chairs	per ton 0 2½	
For all sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings	- - - - per ton 0 3	
For cotton wools drugs and manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein	- - - - per ton 0 4	
For every carriage of whatever description	- - - - 1 0	

	Any distance.
	<u>s. d.</u>
<i>Small Parcels.</i>	
For every parcel not exceeding seven pounds in weight	- - 0 3
For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight	- - - - 0 5
For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight	- - - - 0 7
For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight	- - - - 0 9
For any parcel exceeding fifty-six pounds in weight but not exceeding five hundred pounds in weight such sum as the persons conveying the same may think fit.	

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed parcels but that term shall apply only to single parcels in separate packages.

<i>For the Carriage of Single Articles of Great Weight.</i>	Per mile.
	<u>s. d.</u>
For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage exceeds four tons but does not exceed eight tons such sum as the persons conveying the same may think fit not exceeding per ton	- - - - 2 0
For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage exceeds eight tons such sum as the persons conveying the same may think fit.	

Regulations as to Rates.

For articles or animals conveyed on the tramways for a less distance than a mile rates and charges as for one mile may be demanded.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
Act, 1900.

A.D. 1900. A fraction of a mile beyond an integral number of miles shall be deemed a mile.

*Ashton-
under-Lyne
Corporation.*

For a fraction of a ton rates and charges may be demanded and taken according to the number of the quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton.

With respect to all articles except stone and timber the weight shall be determined according to imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

GARSTON.

Garston. Order authorising the Garston and District Tramways Company Limited to construct a Tramway in the Urban District of Garston.

Preliminary.

Short title. 1. This Order may be cited as the Garston Tramway Order 1900.

Incorporation
of Acts.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order.

Interpretation.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings.

Provided that in this Order—

The expression “the district” means the urban district of Garston in the county of Lancaster;

The expression “the tramway” means the tramway and works by this Order authorised;

The expression “the undertaking” means the undertaking by this Order authorised;

The expression “mechanical power” includes steam electrical and every other motive power not being animal power;

The expression “engine” includes motor.

Promoters.

The
Promoters.

4. The Garston and District Tramways Company Limited shall be the Promoters for the purposes of this Order and are in this Order referred to as “the Promoters.”

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

A.D. 1900.

Lands.

Garston.

Lands by
agreement.

5. The Promoters may by agreement from time to time purchase take on lease and acquire for the purposes of the undertaking such lands as they may require and may from time to time sell let or dispose of any such lands which may not be necessary for such purposes Provided that they shall not at any time hold for such purposes more than two acres of land Provided also that nothing in this Order shall exonerate the Promoters from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon lands appropriated or taken under the powers of this section.

Construction of Tramway.

Construction
of tramway.

6. The Promoters may construct and maintain subject to the provisions of this Order and in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramway herein-after described with all proper rails plates sleepers channels junctions turntables turnouts crossings passing-places offices stables carriage engine boiler and dynamo houses sheds buildings works and conveniences connected therewith or for the purposes thereof Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramway authorised by this Order will be wholly situate within the district and is as follows (that is to say) :—

A tramway (2 miles 1 furlong 3 chains in length whereof 1 mile 7 furlongs 4·50 chains will be single line and 1 furlong 8·50 chains will be double line) commencing in Aigburth Road at a point 0·50 chain or thereabouts measured in a south-easterly direction from the intersection of the centre lines of Ashfield Road and Aigburth Road passing along Aigburth Road St. Mary's Road and Speke Road and terminating in the last named road at a point 5·70 chains or thereabouts measured in an easterly direction from the intersection of the centre lines of Church Road and Speke Road The tramway will be laid as a single line except in the following places where it will be laid as a double line :—

- (a) For a distance of 4 chains from its commencement.
- (b) Between points respectively 1·40 chains and 5·40 chains measured in a south-easterly direction from the intersection of the centre lines of Woodlands Road and Aigburth Road.
- (c) Between points respectively 13·50 chains and 17 chains measured in a south-easterly direction from the intersection of the centre lines of Garston Old Road and Aigburth Road.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
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Garston.

(d) Between points respectively 0·40 chain and 3·90 chains measured in a south-easterly direction from the lamp post in the roadway at the junctions of Seddon Road and Dock Road with St. Mary's Road.

(e) Between points respectively 0·50 chain and 4 chains measured in a south-easterly direction from the intersection of the centre lines of James Street and St. Mary's Road.

For the protection of the
Liverpool
Corporation.

7. The provisions of section 30 of the Tramways Act 1870 shall extend and apply to the mains pipes tubes wires and apparatus of the mayor aldermen and citizens of the city of Liverpool as if they were a company within the meaning of that section.

For the protection of the
Cheshire Lines
Committee.

8. For the protection of the Cheshire Lines Committee (herein-after in this section referred to as "the committee") the following provisions shall apply and have effect:—

(Superintend-
ence of works
affecting
railways &c.)

(1) All works which may be necessary in constructing and maintaining the tramway on over or under any bridge or works of the committee shall be constructed and maintained in all things at the expense of the Promoters and to the reasonable satisfaction of the principal engineer of the committee or in case of difference of an engineer to be appointed by the Board of Trade on the application of the committee or the Promoters.

(Notice of
intention to
execute
works.)

(2) Before commencing any works on over or under any bridge or the approaches thereto or other work of the committee the Promoters shall give fourteen days' notice in writing to the committee of their intention to execute such works and such notice shall be accompanied by a plan and specification showing the nature and extent of the intended works.

(Structure of
bridges.)

(3) The Promoters shall not in any way vary alter or interfere with the structure of any bridge carrying any road over or under any railway of the committee or of the approaches thereto and they shall so construct maintain and use the tramway on over or under such bridge and the approaches thereto as not injuriously to affect the same Provided further that whenever the tramway on either side of any bridge to which this sub-section applies is a single line there shall only be a single line over such bridge and no turnouts or passing-places shall be constructed thereon.

(Injury to
bridges and
repair of roads
over same.)

(4) In the event of any injury being caused to any such bridge or approaches or other work by the construction maintenance repairing user or removal of the tramway the committee may at the expense of the Promoters restore such bridge or approaches or other work or the part or parts thereof which may be injured to as good a state and condition as they were in before such injury was occasioned and the Promoters shall indemnify the committee against all sums costs and expenses which they may pay or be put to in repairing and maintaining so much of the road over such bridge and approaches as the Promoters are liable to maintain and repair under section 28 of the Tramways Act 1870

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and the committee may recover from the Promoters all such sums costs and expenses by all and the same means as any simple contract debt of like amount may be recovered.

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- (5) Whenever and so often as the committee shall require to widen lengthen strengthen reconstruct alter or repair any such bridge or approaches or to widen or alter their railways or to lift or support any such bridge or approaches owing to the subsidence thereof caused by the minerals thereunder having been or being worked or gotten and it shall be necessary for effecting any of such purposes that the working and user of the tramway over such bridge or approaches shall be wholly or partly stopped up or delayed or that such tramway shall be temporarily diverted and be wholly or in part taken up or removed and shall except in cases of emergency give to the Promoters fourteen clear days' notice in writing requiring such stoppage delay or diversion taking up or removal the working and user of such tramway shall be stopped or delayed or such tramway shall be diverted or taken up or removed accordingly at the expense of the Promoters and under the superintendence of their engineer (if such engineer shall give such superintendence) but only for so long as it may be absolutely necessary for effecting such purpose and the committee shall not be liable for any compensation claims demands damages costs and expenses for and in respect of such stoppage or delay or in any way relating thereto.
- (Suspension of tramway traffic during alterations in bridges widening of railways &c.)
- (6) In case it shall be found that any such strengthening is necessary owing to the carriages or other vehicles on the tramway being or being intended to be moved by mechanical power such strengthening shall be effected in all things at the expense of the Promoters who shall also pay to the committee all additional expenses which they may incur or be put to in effecting any such widening lengthening strengthening reconstructions alterations repairs lifting or supporting by reason of the existence of the tramway so passing or any of the works connected therewith the amount of such expenditure to be recoverable as aforesaid by the committee from the Promoters with full costs and charges by all and the same means as any simple contract debt of like amount may be recovered.
- (Strengthening of bridges necessitated by mechanical traction.)
- (7) In the event of the tramway being worked by electricity on the overhead system no stays posts wires or other apparatus shall without the previous consent in writing of the committee be attached to any bridge or other work of the committee.
- (Overhead traction plant.)
- (8) If any difference shall arise under this Order between the Promoters and the committee the matter in difference shall unless otherwise agreed be determined (save where by this section otherwise provided) by arbitration under this Order.
- (Settlement of differences.)
9. The tramway shall be constructed on a gauge of 4 feet 8½ inches or such other gauge as may from time to time be determined by the Board of Trade on the application of the Promoters Provided always that in the
- Gauge and width of carriages.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
Act, 1900.

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event of the tramway being constructed on a less gauge than 4 feet 8½ inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramway beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramway but no engine or carriage used on the tramway shall exceed 6 feet 6 inches in width or such other width as may from time to time be prescribed by the Board of Trade.

Provisions as
to construction
of tramway.

10. In addition to the requirements of section 26 of the Tramways Act 1870 the Promoters shall at the same time as they give notice to the road authority of their intention to open or break up any road for the purpose of constructing laying down maintaining or renewing the tramway or any part thereof lay before the Board of Trade and the road authority a plan showing the proposed mode of constructing laying down maintaining or renewing such tramway and a statement of the materials intended to be used therein and the Promoters shall not commence the construction laying down maintenance or renewal of the tramway or part thereof except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and the road authority and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor for the time being of the road authority as provided by section 26 of the said Act.

Rails of
tramway.

11. The rails of the tramway shall be such as the Board of Trade may approve.

Penalty for
not main-
taining rails
and roads
in good
condition.

12. The Promoters shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramway and the substructure upon which the same rest and if the Promoters at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramway or any portion thereof is situate or by twenty inhabitant ratepayers of such district that the Promoters have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Promoters to such penalty or penalties in respect thereof as is or are by this section imposed.

Tramway to
be kept on
level of
surface of
road.

13. If any road authority hereafter alter the level of any road along or across which any part of the tramway is laid or authorised to be laid the Promoters may and shall from time to time alter or (as the case may

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
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be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Garston.

14. The Promoters may with the consent of the Board of Trade and the road authority lay down double lines in lieu of single or single lines in lieu of double or interlacing lines in lieu of double or single lines on the tramway and may with the like consents alter the position in the road of the tramway or any part thereof. Provided that the uppermost surface thereof shall be on a level with the surface of the road. Provided further that in the exercise of the powers of this section no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Promoters within three weeks after receiving from the Promoters notice of their intention express their objection thereto.

Alteration of tramway.

15. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Promoters shall if and where required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Cross-overs to be constructed in certain cases.

16. The Promoters may subject to the provisions of this Order with the consent of the local and road authorities from time to time make maintain alter and remove all such cross-overs passing-places sidings loops triangles junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramway or any part thereof or for facilitating the traffic of the roads in which the same is laid or for providing access to any stables carriage-houses sheds or works of the Promoters or for effecting junctions with any tramways. Provided that in the construction of any such works no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Promoters within three weeks after receiving from the Promoters notice of their intention express their objection thereto.

Additional cross-overs &c. may be made where necessary.

17. Where by reason of the execution of any work affecting the surface or soil of any road along which the tramway or any part thereof is laid it is in the opinion of the road authority necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Promoters may subject to such conditions and in accordance in all respects with such regulations as the road authority may from time to time make construct in the same or any adjacent road and with the like consent subject to the like conditions and in accordance with the like regulations maintain so long as

Temporary tramways.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
Act, 1900.

A.D. 1900. occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of the tramway so removed or discontinued.

Garston.

If any difference arises between the Promoters and any road authority with respect to anything contained in this section the same shall be settled in the manner specified in section 33 of the Tramways Act 1870 for the settlement of the differences in the said section mentioned.

Application
of road
materials
excavated in
construction
of Promoters'
works.

18. Any paving metalling or material excavated by the Promoters in the construction of the tramway from any road under the jurisdiction or control of any road authority may be applied by the Promoters so far as may be necessary in or towards the reinstating of the road and the maintenance for six months after completion of the tramway within the district of such road authority of so much of the roadway on either side of the tramway as the Promoters are by this Order required to maintain and the Promoters shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of such road authority or to such person as he may appoint to receive the same at such place as he may direct. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit. Any difference between the Promoters and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by a referee to be nominated by the Board of Trade on the application of either party.

Tramway not
to be opened
until certified
by Board of
Trade.

19. The tramway shall not be opened for public traffic until the same has been inspected and certified to be fit for such traffic by the Board of Trade.

Motive Power.

Provisions as
to motive
power.

20. The carriages used on the tramway may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade.
- (2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramway and for regulating the use of electrical power.
- (3) The Promoters or any other company or person using any mechanical power on the tramway contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof.

(4) The Board of Trade if they are of opinion—

A.D. 1900.

(a) that the Promoters or such other company or person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered ; or

Garston.

(b) that the use of mechanical power as authorised under this Order is a danger to the passengers or the public ;

may by order either direct the Promoters or such other company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Promoters or such other company or person shall comply with every such order In every such case the Board of Trade shall make a special report to Parliament notifying the making of such Order.

21.—(1) The Promoters may (subject to the provisions of this Order):—

Mechanical
power works.

(a) Erect provide and use on any lands acquired by them under the powers of this Order dynamos engines boilers and other machinery and apparatus and things necessary or proper for the working of the tramway by mechanical power ;

(b) From time to time subject to the reasonable approval of the local and road authorities and to such reasonable terms and conditions as those authorities may impose and subject to the approval of the local authority as to the design of works enter upon and open the surface of and lay down construct erect and maintain on in under or over the surface of any street or road such posts conductors wires tubes mains plates boxes and apparatus and make and maintain such openings posts wires tubes or ways in on under or over any such surface and may with the consent of the owners and occupiers of any houses and buildings affix to such houses or buildings and maintain such brackets electric conductors wires and apparatus as may be necessary or convenient either for the working of the tramway or for providing access to or forming connexions with any engines machinery or apparatus or for connecting any portions of such tramway Provided that if before the erection of any such posts standards brackets and attachments in the district of a local or road authority the Promoters deliver to the authority a drawing and a description of the same and a plan showing the proposed position thereof and the authority do not within fourteen days (or where the authority is a county council within twenty-eight days) give notice to the Promoters of any objection such authority shall be taken to have agreed to the size position design and construction of such posts standards brackets and attachments as shown by the said drawing description and plan and that any question which may arise between the Promoters and a local or road authority shall be determined by arbitration.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
Act, 1900.

A.D. 1900.

Garston.

(2) The provisions of section 26 of the Tramways Act 1870 and the provisions of this Order shall apply mutatis mutandis to the breaking up of and interference with any roads under this section and the Promoters shall from time to time and without delay repair and make good all such roads to the satisfaction of the road authority.

Mechanical
power works
to be subject
to section 30
of the Tram-
ways Act 1870.

22. All works to be executed by the Promoters in any road for working the tramways by mechanical power in pursuance of the powers of this Order shall be deemed to be works of a tramway subject in all respects (save as by this Order otherwise expressly provided) to the provisions of section 30 of the Tramways Act 1870 as if they had been therein expressly mentioned.

Byelaws.

23.—(1) Subject to the provisions of this Order the Board of Trade may make byelaws with regard to the tramway or any part thereof upon which mechanical power may be used for all or any of the following purposes (that is to say) :—

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages ;

For regulating the emission of smoke or steam from engines used on the tramway ;

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety ;

For regulating the entrance to exit from and accommodation in the carriages used on the tramway and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages ;

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramway by exhibition of the same in conspicuous places on the carriages and elsewhere.

(2) Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

Amendment
of the Tram-
ways Act 1870
as to byelaws
by local
authority.

24. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramway shall not authorise the local authority to make any byelaws sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which engines are to be driven or propelled on the tramway under the authority of this Order but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

Special
provisions as
to use of
electrical
power.

25. The following provisions shall apply to the use of electrical power under this Order unless such power is entirely contained in and carried along with the carriages :—

(1) The Promoters shall employ either insulated returns or uninsulated metallic returns of low resistance.

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

(2) The Promoters shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus.

A.D. 1900.

Garston.

(3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return.

(4) The Promoters shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Promoters either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking.

(5) At the expiration of two years from the passing of the Act confirming this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents.

(6) If any difference arises between the Promoters and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be.

(7) The expression "the Promoters" in this section shall include any person owning working or running carriages over any tramway of the Promoters.

26.—(a) Notwithstanding anything in this Order contained if any of the works authorised to be executed by this Order involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply

For protection
of the
Postmaster-
General.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
Act, 1900.

A.D. 1900. (instead of the provisions of section 30 of the Tramways Act 1870) to any
such alteration.
Garston.

(b) In the event of the tramway or any part thereof being worked by electricity the following provisions shall have effect:—

(1) The Promoters shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by Her Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. If any question arises as to whether the Promoters have constructed their electric lines or other works or work their undertaking in contravention of this sub-section such question shall be determined by arbitration and the Promoters shall be bound to make any alterations in or additions to their system which may be directed by the arbitrator.

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking of the Promoters the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection.

(3)—(a) Before any electric line is laid down or any act or work for working the tramway by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs or the laying of lines crossing the line of the Postmaster-General at right angles at the point of shortest distance and so continuing for a distance of six feet on each side of such point) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work:

(b) Any difference which arises between the Postmaster-General and the Promoters or their agents with respect to any requirements so made shall be determined by arbitration.

(4) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues.

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

- (5) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of the act or execution of the work was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reasons for doing or executing the same without previous notice. A.D. 1900.
Garston.
- (6) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work.
- (7) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order.
- (8) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882.
- (9) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act.
- (10) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid.
- (11) In this section the expression "the Promoters" includes any company or person owning working or running carriages over the tramway or any part thereof.

Traffic upon Tramway.

27. The tramway may be used for the purpose of conveying passengers animals goods minerals and parcels. Traffic upon tramway.

28. The Promoters shall not be bound to carry unless they think fit any animals goods minerals or parcels other than passengers' luggage not exceeding twenty-eight pounds in weight. Promoters not bound to carry animals goods &c.

Rates.

29. The Promoters may demand and take for every passenger travelling upon the tramway or any part thereof including every expense incidental to such conveyance any rates or charges not exceeding one penny per mile (and for this purpose the fraction of a mile beyond an integral number of miles shall be deemed a mile) but in no case shall the Promoters be bound to charge a less sum than twopence. Fares.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
Act, 1900.

A.D. 1900.

Garston.

As to fares
on Sundays
or holidays.

Passengers'
luggage.

Cheap fares
for labouring
classes.

Rates and
charges for
animals
goods &c.

Payment of
rates.

Periodical
revision of
rates.

30. The Promoters or any person working or using the tramway shall not take or demand on Sunday or any public holiday any higher rates or charges than those levied by them on ordinary week days.

31. Every passenger travelling upon the tramway may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof Provided that all such personal luggage be carried by hand and at the responsibility of the passenger and do not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

32.—(1) The Promoters at all times after the opening of the tramway for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artizans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Promoters in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Promoters to provide such service as may appear to the Board to be reasonable.

(3) The Promoters shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

33. The Promoters may demand and take in respect of any animals goods minerals or parcels conveyed by them on the tramway including every expense incidental to such conveyance any rates or charges not exceeding the rates and charges specified in the schedule to this Order annexed subject to the regulations in that behalf therein contained.

34. The rates and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramway and in such manner and under such regulations as the Promoters may by notice to be annexed to the list of rates and charges appoint.

35. If at any time after three years from the opening for public traffic of the tramway or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramway or any portion thereof it is represented in writing to the Board of Trade by the local authority of the district or by twenty inhabitant ratepayers of the district or by the Promoters that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramway or on such portion should be revised the Board of Trade may

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

(if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if such referee reports that it has been proved to his satisfaction that all or any of the rates and charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramway or on such portion of the tramway in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Order authorised Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Promoters.

A.D. 1900.

Garston.

Miscellaneous.

36. The Promoters may by agreement enter upon run over and use with their engines carriages and servants for the purposes of traffic of all kinds the whole or any part of the tramways belonging to the mayor aldermen and citizens of the city of Liverpool and any other local authority company or person owning or for the time being working any tramways for the time being connected or communicating directly or indirectly with the tramway and authorised to enter into such agreements.

Running powers.

37. The Promoters may with the consent of the Board of Trade from time to time but subject to the provisions of this Order enter into and carry into effect contracts and agreements with any person or local authority owning or lawfully working or using any tramways and authorised to enter into such contracts and agreements for and in relation to the interchange accommodation and forwarding of carriages passengers and traffic on from or to any of such tramways on to or from the tramway and for and in relation to the user by the contracting parties or any or either of them of the whole or any part of their respective tramway undertakings or of any or either of them respectively and to the fixing collecting and apportionment of rates charges and other receipts.

Working agreements.

38. The Promoters and any road authority may subject to the provisions of this Order and with the consent of the Board of Trade from time to time enter into and carry into effect agreements with respect to the construction maintaining removing renewing repairing and using of the tramway or any part thereof situate within the district of such road authority and the rails plates sleepers and works connected therewith and facilitating of the traffic over the same and also with respect to the use of mechanical power on the tramway the mode of laying down or erection and maintenance of any cables mains posts wires apparatus or other works the maintenance of roads and the exercise of any powers by this Order conferred in that behalf.

Agreements with road authority.

39. Every sanitary authority shall at all times have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent or

Sanitary authority to have access to sewers.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
Act, 1900.

A.D. 1900.

—
Garston.

concurrence of the Promoters and the provisions contained in sections 32 and 33 of the Tramways Act 1870 shall be applicable in the case of any sewer or private drain of or under the control of the sanitary authority as if the same were a pipe for the supply of gas or water.

Saving as to
powers of
borrowing on
mortgage.

40. Nothing in this Order or in the Tramways Act 1870 contained shall prevent the Promoters borrowing money on the security of mortgages of the undertaking or shall make the consent or approval of the Board of Trade necessary to the validity or effect of any such mortgage. Provided that every mortgage of the undertaking shall be deemed to comprise all purchase money which may be paid to the Promoters in the event of a compulsory sale of the undertaking to the local authority under section 43 of the Tramways Act 1870 and that any mortgage granted by the Promoters shall not be a charge upon the undertaking in the event of the undertaking being purchased by the local authority under section 43 of the Tramways Act 1870 and that every mortgage deed granted by the Promoters shall be endorsed with notice to that effect.

Orders &c.
of the Board
of Trade.

41. All orders regulations and byelaws made and consents and certificates given by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board and when purporting to be so signed the same shall be deemed to be duly made in accordance with the provisions of this Order and to be orders and regulations within the meaning of the Documentary Evidence Acts 1868 and 1882 and may be proved accordingly.

Recovery of
penalties.

42. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction Acts.

Form and
delivery of
notices.

43. With respect to notices and to the delivery thereof by or to the Promoters the following provisions shall have effect (that is to say):—

- (1) Every notice shall be in writing and if given by the Promoters or by any local or road authority or company shall be signed by their clerk or secretary.
- (2) Any notice to be delivered by or to the Promoters to or by any body or any company or corporation may be delivered by being left at the principal office of the Promoters or of such body company or corporation as the case may be or by being sent by post in a registered letter addressed to their respective clerk or secretary at their principal office.

Provisions as
to arbitration.

44. Where under the provisions of the Tramways Act 1870 and this Order any matter in difference is referred to the arbitration of any person nominated by the Board of Trade the provisions of the Arbitration Act 1889 shall apply to every such arbitration and the decision of the arbitrator shall be final and conclusive and binding on all parties and the costs of and incidental to the arbitration and award shall if either party so require be taxed and settled as between the parties by any one of the taxing masters of the High Court and such fees may be taken in respect of the taxation as may be fixed in pursuance of the enactments relating to the fees to be

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4) [Ch. cci.]*
Act, 1900.

demanded and taken in the offices of such masters and all those enactments including the enactments relating to the taking of fees by means of stamps shall extend to the fees in respect of the said taxation. A.D. 1900.
Glasgow.

45. Nothing in this Order contained shall exempt the Promoters or any person using the tramway or the tramway from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of rates and charges authorised by this Order. Saving for
general Acts.

SCHEDULE.

RATES AND CHARGES FOR ANIMALS GOODS &C.

<i>Animals.</i>		Per mile.	
		s.	d.
For every horse mule or other beast of draught or burden per head		0	4
For every ox cow bull or head of cattle	- - - - -	0	3
For every calf pig sheep or other small animal	- - - - -	0	1½

Goods and Minerals.

For all coal coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways	- - - - -	- per ton	0	2
For all iron iron-ore pig-iron bar-iron rod-iron sheet-iron hoop-iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought iron not otherwise specifically classed herein and for heavy iron castings including railway chairs	- - - - -	- per ton	0	2½
For all sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings	- - - - -	- per ton	0	3
For cotton wools drugs and manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein	- - - - -	- per ton	0	4
For every carriage of whatever description	- - - - -	-	1	0

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
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A.D. 1900.
Garston.

<i>Parcels.</i>		<i>Any Distance.</i>	
		<i>s.</i>	<i>d.</i>
For any parcel not exceeding 7 pounds in weight	- each	0	3
For any parcel exceeding 7 pounds but not exceeding 14 pounds in weight	- - - - - each	0	5
For any parcel exceeding 14 lbs. but not exceeding 28 lbs. in weight	- - - - - each	0	7
For any parcel exceeding 28 lbs. but not exceeding 56 lbs. in weight	- - - - - each	0	9
For any parcel exceeding 56 lbs. in weight but not exceeding 500 lbs. in weight such sum as the person conveying the same may think fit.			

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed parcels but that term shall apply only to single parcels in separate packages.

<i>For the Carriage of Single Articles of Great Weight.</i>		<i>Per mile.</i>	
		<i>s.</i>	<i>d.</i>
For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage exceeds four tons but does not exceed eight tons such sum as the persons conveying the same may think fit not exceeding per ton	- 2 0		
For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage exceeds eight tons such sum as the persons conveying the same may think fit.			

Regulations as to Rates.

For articles or animals conveyed on the tramway for a less distance than a mile rates and charges as for one mile may be demanded.

A fraction of a mile beyond an integral number of miles shall be deemed a mile.

For a fraction of a ton rates and charges may be demanded and taken according to the number of the quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton.

With respect to all articles except stone and timber the weight shall be determined according to imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

GORTON URBAN DISTRICT COUNCIL.

A.D. 1900.

*Order authorising the Urban District Council of Gorton to
construct Tramways in their District.*

*Gorton
Urban District
Council.*

Preliminary.

1. This Order may be cited as the Gorton Urban District Council Tramways Order 1900. Short title.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order. Incorporation
of Acts.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings: Interpretation.

Provided that in this Order—

The expression “the district” means the urban district of Gorton in the county of Lancaster;

The expression “the Council” means the Urban District Council of Gorton;

The expression “the tramways” means the tramways and works by this Order authorised;

The expression “the undertaking” means the undertaking by this Order authorised;

The expression “mechanical power” includes steam electrical and every other motive power not being animal power;

The expression “engine” includes motor.

4. The Council shall be the Promoters for the purposes of this Order and are in this Order referred to as “the Promoters.” The Pro-
moters.

5. The Promoters may— Lands.

(a) subject to the sanction of the Local Government Board and under such conditions as they may prescribe from time to time appropriate and use for any of the purposes of this Order but subject to the provisions (if any) under which such lands were respectively acquired any lands not dedicated to public use from time to time vested in them;

(b) by agreement from time to time purchase and acquire for the purposes of the undertaking such lands as they may require and may from time to time sell let or dispose of any such lands which may not be necessary for such purposes Provided that all sums received by the Promoters from the sale of such lands or from fines or premiums on leases of the same shall

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 Vict.]
Act, 1900.

A.D. 1900.

*Gorton
Urban District
Council.*

be applied solely in repayment of outstanding loans and that such moneys shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board ;

Provided that they shall not at any time hold for such purposes more than two acres of land Provided also that nothing in this Order shall exonerate the Promoters from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon lands appropriated or taken under the powers of this section.

Construction of Tramways.

Construction
of tramways.

6. The Promoters may subject to the provisions of this Order :—

(a) construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as “the deposited plans” and “the deposited sections”) the tramways herein-after described with all proper rails plates sleepers junctions turntables turnouts buildings works and conveniences connected therewith or for the purposes thereof ;

(b) erect or construct on any lands acquired or appropriated for the purposes of the undertaking any offices sheds stables workshops stores waiting-rooms or other buildings yards works and conveniences for the purposes of the undertaking :

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways authorised by this Order will be wholly situate within the district and are as follows (that is to say) :—

Tramway No. 1 (7 furlongs 8·75 chains in length whereof 4 furlongs 9·89 chains will be single line and 2 furlongs 8·86 chains will be double line) commencing in Gorton Lane at the boundary of the district of Gorton and the city of Manchester opposite to the south-western side of Queen's Road continuing along Gorton Lane Wellington Street and Hyde Road and terminating in the last-mentioned road by a junction with the tramways of the Manchester Carriage and Tramways Company Limited at a point 7 yards east of the eastern side of Wellington Street.

This tramway will be laid as single line except at the following places where it will be laid as double line :—

(a) In Gorton Lane between the points respectively 66 yards and 132 yards east of the commencement of the tramway.

(b) In Gorton Lane between the points respectively $14\frac{1}{2}$ yards and $80\frac{1}{2}$ yards east of the eastern side of Bealey Street.

(c) In Gorton Lane between the points respectively $13\frac{1}{2}$ yards and $79\frac{1}{2}$ yards east of the western side of Charles Street.

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

(d) In Gorton Lane between the points respectively $76\frac{1}{3}$ yards and $10\frac{1}{3}$ yards west of the western side of Froxmere Street. A.D. 1900.

(e) In Gorton Lane between the points respectively $10\frac{1}{3}$ yards and $76\frac{1}{3}$ yards east of the eastern side of Blair Street. *Gorton Urban District Council.*

(f) In Gorton Lane and Wellington Street from a point $6\frac{1}{3}$ yards west of the western side of Church Lane to a point $35\frac{2}{3}$ yards north of the northern side of Turner Street.

(g) In Wellington Street between the points $21\frac{1}{3}$ yards north of the northern side and 45 yards south of the northern side of Cross Lane.

(h) In Wellington Street from a point $5\frac{2}{3}$ yards south of the southern side of Duke Street continuing into Hyde Road to the termination of the tramway.

Tramway No. 1A (double line 1·46 chains in length) to be situate in Wellington Street and Hyde Road commencing in Wellington Street by a junction with the intended Tramway No. 1 at a point 15 yards north of the northern side of Hyde Road and terminating in Hyde Road by a junction with the existing tramway of the said company at a point 17 yards west of the western side of Wellington Street.

Tramway No. 2 (1 furlong 8·36 chains in length whereof 9·52 chains will be single line and 8·84 chains will be double line) commencing in Hyde Road by a junction with the tramway of the said company at a point $10\frac{1}{3}$ yards east of the eastern side of Reddish Lane thence proceeding into and along Reddish Lane and terminating therein at the boundary of the district at a point opposite to the centre of Back Green Lane.

This tramway will be laid as single line except at the following places where it will be laid as double line :—

(a) In Hyde Road and Reddish Lane from the commencement of the tramway to a point $44\frac{1}{3}$ yards south of the southern side of Hyde Road.

(b) In Reddish Lane between the points $98\frac{1}{3}$ yards and $165\frac{2}{3}$ yards respectively south of the southern side of Hyde Road.

(c) In Reddish Lane between the points respectively $77\frac{1}{3}$ yards and $11\frac{1}{3}$ yards north of the termination of the tramway.

Tramway No. 2A (single line 1·25 chains in length) commencing in Hyde Road at a junction with the tramway of the said company at a point 9 yards east of the centre of the bridge carrying that road over the Stockport Canal passing thence into Reddish Lane and terminating in that lane at a point $12\frac{2}{3}$ yards south of the southern side of Hyde Road.

7. The following provision for the protection of the lord mayor aldermen and citizens of the city of Manchester (herein-after referred to as "the corporation") shall apply and have effect :—

For pro-
tection of
corporation of
Manchester.

(1) In the construction of the tramways the Council shall deviate in such places to such extent and in such manner as may be necessary for avoiding interference with any gas or water mains pipes works or apparatus belonging to the corporation but no such deviation shall be so made as to leave a less space than nine feet six inches between the nearest rail of the tramway to be deviated and the outside of the footpath.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
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Urban District
Council.*

- (2) Sections 30 32 and 35 of the Tramways Act 1870 shall (subject to the other provisions of this section) extend and apply to the corporation with reference to the gas and water mains pipes works or apparatus belonging to the corporation in like manner as the same apply to a company or person being the owner of gas and water mains pipes works or apparatus Provided that all works or interference with or in connexion with the gas and water mains pipes works or apparatus belonging to the corporation under section 30 of the Tramways Act 1870 or otherwise shall be made and executed by the corporation and not otherwise upon the request and at the reasonable cost of the Council unless the corporation fail to commence to make or execute the same within seven days after being requested to do so or to complete the same with all reasonable despatch.
- (3) The cost of constructing providing and laying any new gas or water mains pipes works or apparatus in substitution for any which may be rendered useless by the construction of the tramways shall subject to credit being given for the value of the mains pipes works and apparatus so rendered useless to the corporation be repaid to the corporation by the Council Provided always that whenever any new main pipe work or apparatus of larger dimensions or superior quality shall be substituted for any existing main pipe work or apparatus the Council shall (unless the increased dimension be required by reason of the construction or existence of the tramways) only be required to pay the costs which would have been incurred by the substitution of a main pipe work or apparatus of equal dimensions and quality with the existing main pipe work or apparatus.
- (4) All and singular sum and sums of money herein-before provided to be paid by the Council to the corporation may be recovered by the corporation by all and the same means as any simple contract debt.
- (5) Whenever in the execution of the powers in this Order contained it shall be necessary to alter or interfere with or disturb any of the gas or water mains pipes works or apparatus belonging to the corporation such alteration in the position or otherwise of any such gas or water mains pipes works or apparatus which may be required for the purposes of any works by this Order authorised shall be carried out by and under the direction of the corporation but at the reasonable expense in all respects of the Council unless the corporation fail to commence to carry out the same within seven days after being requested to do so or to complete the same with all reasonable despatch.
- (6) The corporation shall not be liable for and the Council shall indemnify the corporation against all loss to the Council by reason of suspension of traffic and all accidents damages or injuries to the tramways works and property of the Council and the persons and property being conveyed on or using the same and all actions suits and costs in respect thereof which may either by the construction of the works of the Council or at any time thereafter in consequence thereof be caused by the bursting breaking or leakage of or escape of water from any main or pipe or other apparatus of the corporation crossing or being underneath (either

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

wholly or partially) or near to any tramway or work of the Council. or which may have been affected by the works of the Council unless such damage or injury shall have arisen as the consequence of or shall have been contributed to by any act or default of the corporation or their officers or servants. Provided always that the corporation shall at the cost of the Council and without unnecessary delay execute and do all things necessary to make good any such bursting breaking leakage or escape.

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8. The Promoters shall not in constructing the tramways cross or make any junction or connexion with any of the tramways belonging to the Manchester Carriage and Tramways Company unless and until they shall in pursuance of their statutory powers have purchased the undertaking of the said company authorised by the Manchester Suburban Tramways Order 1877 and the Manchester Carriage and Tramways Company's Order 1882 or failing such purchase without the consent of the said company in writing and then only on such terms and conditions as may be mutually agreed.

For the pro-
tection of the
Manchester
Carriage and
Tramways
Company.

9. For the protection of the Sheffield and Midland Railway Companies Committee (in this section referred to as "the committee") the following provisions shall apply and have effect :

For the protec-
tion of the
Sheffield and
Midland Railway
Companies
Committee.

- (1) All works which may be necessary in constructing and maintaining any of the tramways on over or under any bridge or works of the committee shall be constructed and maintained in all things at the expense of the Promoters and to the reasonable satisfaction of the principal engineer of the committee or in case of difference of an engineer to be appointed by the Board of Trade on the application of the committee or the Promoters.
- (2) Before commencing any works on over or under any bridge or the approaches thereto or other work of the committee the Promoters shall give fourteen days' notice in writing to the committee of their intention to execute such works and such notice shall be accompanied by a plan and specification showing the nature and extent of the intended works.
- (3) The Promoters shall not in any way vary alter or interfere with the structure of any bridge carrying any road over or under any railway of the committee or of the approaches thereto and they shall so construct maintain and use the tramways on over or under such bridge and the approaches thereto as not injuriously to affect the same. Provided further that whenever any of the said tramways on either side of any bridge to which this sub-section applies is a single line there shall only be a single line over such bridge and no turnouts or passing-places shall be constructed thereon.
- (4) In the event of any injury being caused to any such bridge or approaches or other work by the construction maintenance repairing user or removal of any of the tramways the committee may at the expense of the Promoters restore such bridge or approaches or other work or the part or parts thereof which may be injured to as good a state and condition as they were in before such injury was occasioned and the Promoters shall

(Superinten-
dence of works
affecting rail-
ways &c.)

(Notice of
intention to
execute works.)

(Structure of
bridges.)

(Injury to
bridges and
repair of road
over same.)

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
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indemnify the committee against all sums costs and expenses which they may pay or be put to in repairing and maintaining so much of the road over such bridge and approaches as the Promoters are liable to maintain and repair under section 28 of the Tramways Act 1870 and the committee may recover from the Promoters all such sums costs and expenses with full costs and charges by all and the same means as any simple contract debt of like amount may be recovered.

(Suspension
of tramway
traffic during
alterations in
bridges
widening of
railways &c.)

(5) Whenever and so often as the committee shall require to widen lengthen strengthen reconstruct alter or repair any such bridge or approaches or to widen or alter their railways or to lift or support any such bridge or approaches owing to the subsidence thereof caused by the minerals thereunder having been or being worked or gotten and it shall be necessary for effecting any of such purposes that the working and user of any of the tramways over such bridge or approaches shall be wholly or partly stopped up or delayed or that such tramways shall be temporarily diverted and wholly or in part taken up or removed and shall except in cases of emergency give to the Promoters fourteen clear days notice in writing requiring such stoppage delay or diversion taking up or removal the working and user of such tramways shall be stopped or delayed or such tramways shall be diverted or taken up or removed accordingly at the expense of the Promoters and under the superintendence of their engineer (if such engineer shall give such superintendence) but only for so long as it may be absolutely necessary for effecting such purpose and the committee shall not be liable for any compensation claims demands damages costs and expenses for and in respect of such stoppage or delay or in any way relating thereto.

(Strengthening
of bridges
necessitated
by mechanical
traction.)

(6) In case it shall be found that any such strengthening is necessary owing to the carriages or other vehicles on any of the tramways being or being intended to be moved by electrical steam or any mechanical power such strengthening shall be effected in all things at the expense of the Promoters who shall also pay to the committee all additional expenses which they may incur or be put to in effecting any such widening lengthening strengthening reconstructions alterations repairs lifting or supporting by reason of the existence of the tramway so passing or any of the works connected therewith the amount of such expenditure to be recoverable as aforesaid by the committee from the Promoters by all and the same means as any simple contract debt of like amount may be recovered.

(Overhead
traction
plant.)

(7) In the event of the tramways being worked by electricity on the overhead system no stays posts wires or other apparatus shall without the previous consent in writing of the committee be attached to any bridge or other work of the committee.

(Settlement of
differences.)

(8) Any matter in difference under this section between the Promoters and the committee shall unless otherwise agreed be referred (save where by this section otherwise provided) to the Board of Trade whose decision shall be final or if the Board of Trade think fit to the arbitration of a person nominated by the Board of Trade.

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
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10. The tramways shall be constructed on a gauge of 4 feet 8½ inches or such other gauge as may from time to time be determined by the Board of Trade on the application of the Promoters. Provided always that in the event of the tramways being constructed on a less gauge than 4 feet 8½ inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramways beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed 6 feet 6 inches in width or such other width as may from time to time be prescribed by the Board of Trade.

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Gauge and
width of
carriages.

11. In addition to the requirements of section 26 of the Tramways Act 1870 the Promoters shall lay before the Board of Trade a plan showing the proposed mode of constructing laying down maintaining or renewing the tramways and a statement of the materials intended to be used therein and the Promoters shall not commence the construction laying down maintenance or renewal of any of the tramways or part of any of the tramways respectively except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement.

Provisions as
to construction
of tramways.

12. The rails of the tramways shall be such as the Board of Trade may approve.

Rails of
tramways.

13. The Promoters shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the sub-structure upon which the same rest and if the Promoters at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues. In case it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the district that the Promoters have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Promoters to such penalty or penalties in respect thereof as is or are by this section imposed.

Penalty for
not maintain-
ing rails and
roads in good
condition.

14. If the Promoters or any other road authority hereafter alter the level of any road along or across which any part of the tramways is laid or authorised to be laid the Promoters may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Tramways to
be kept on
level of
surface of
road.

15. The Promoters may with the consent of the Board of Trade lay down double lines in lieu of single or single lines in lieu of double or interlacing lines

Alteration of
tramways.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 Vict.]
Act, 1900.

A.D. 1900. in lieu of double or single lines on any of the tramways and may with the like consent subject in places where the Promoters may not be the road authority to the approval of that authority alter the position in the road of any of the tramways or any part thereof respectively Provided that the uppermost surface thereof shall be on a level with the surface of the road as altered or widened Provided further that in the exercise of the powers of this section no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Promoters within three weeks after receiving from the Promoters notice of their intention express their objection thereto.

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Cross-overs to
be constructed
in certain
cases.

16. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Promoters shall if and where required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by the means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Additional
cross-overs
&c. may
be made where
necessary.

17. The Promoters may subject to the provisions of this Order from time to time make maintain alter and remove all such cross-overs passing-places sidings triangles junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or any of them or for facilitating the traffic of the roads in which the same are laid or for providing access to any stables or carriage-houses sheds or works of the Promoters or for effecting junctions with any tramways but in places where the Promoters may not be the road authority the same shall only be made subject to the approval of the road authority Provided that in the construction of any such works no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Promoters within three weeks after receiving from the Promoters notice of their intention express their objection thereto.

Temporary
tramways
may be made
when
necessary.

18. Where by reason of the execution of any work affecting the surface or soil of any road along which the tramways are laid it is in the opinion of the Promoters necessary or expedient temporarily to remove or discontinue the use of such tramways or any part thereof the Promoters may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of the tramway so removed or discontinued subject in places in which the Promoters may not be the road authority to the approval of the road authority and to such regulations as that authority may make.

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

19. Any paving metalling or material excavated by the Promoters in the construction of any works under the authority of this Order from any road under their jurisdiction or control shall absolutely vest in and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit.

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Application of
road materials
excavated in
construction
of works.

Provided that the Promoters shall not interfere with any metalling or material forming part of the undertaking of the Manchester Carriage and Tramways Company authorised by the Manchester Suburban Tramways Order 1877 and the Manchester Carriage and Tramways Company's Order 1882 without the consent of the said company unless and until they shall in pursuance of their statutory powers have purchased so much of the said undertaking authorised by the said last-mentioned Orders as is within the district.

20. The tramways shall not be opened for public traffic until the same have been inspected and certified to be fit for such traffic by the Board of Trade.

Tramways not
to be opened
until certified
by Board of
Trade.

Motive Power.

21. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

Provisions as
to motive
power.

(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade.

(2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramways and for regulating the use of electrical power.

(3) The Promoters or any company or person using any mechanical power on the tramways contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof.

(4) The Board of Trade if they are of opinion—

(a) that the Promoters or such company or person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(b) that the use of mechanical power as authorised under this Order is a danger to the passengers or the public;

may by order either direct the Promoters or such company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Promoters or such company or person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

22. For the purpose of working any of the tramways by mechanical power the Promoters and their lessees subject to the provisions of this Order (and as

Mechanical
power works.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 Vict.]
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to the lessees subject to the terms of their lease) may construct maintain and use stations for generating electrical power with all necessary or proper machinery dynamos engines buildings works and conveniences and may place construct erect lay down make and maintain on above or below the surface of any street or road posts brackets electric conductors wires apparatus subways tunnels cables tubes and openings and may with the consent of the owners and occupiers of any houses or buildings affix to such houses or buildings and maintain posts brackets electric conductors wires and apparatus.

Mechanical
power works to
be subject to
section 30 of
Tramways Act
1870.

23. All works to be executed by the Promoters or their lessees in any road for working the tramways by mechanical power in pursuance of the powers of this Order shall be deemed to be works of a tramway subject in all respects (save as by this Order otherwise expressly provided) to the provisions of section 30 of the Tramways Act 1870 as if they had been therein expressly mentioned.

Byelaws.

24. Subject to the provisions of this Order the Board of Trade may make byelaws with regard to any part of the tramways upon which mechanical power may be used for all or any of the following purposes that is to say:—

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages :

For regulating the emission of smoke or steam from engines used on the tramways :

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety :

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages :

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

Amendment of
the Tramways
Act 1870 as to
byelaws by
local authority.

25. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaw sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which engines are to be driven or propelled on the tramways under the authority of this Order but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

Special pro-
visions as to
use of electrical
power.

26. The following provisions shall apply to the use of electrical power under this Order unless such power is entirely contained in and carried along with the carriages :—

(1) The Promoters shall employ either insulated returns or uninsulated metallic returns of low resistance.

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

(2) The Promoters shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus.

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(3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return.

(4) The Promoters shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Promoters either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking.

(5) At the expiration of two years from the passing of the Act confirming this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents.

(6) If any difference arises between the Promoters and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be.

(7) The expression "the Promoters" in this section shall include their lessees and any person owning working or running carriages over any tramways of the Promoters.

27.—(A) Notwithstanding anything in this Order contained if any of the works authorised to be executed by this Order involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-
For protection
of the
Postmaster-
General.

[Ch. cci.] *Tramways Orders Confirmation (No. 4) [63 & 64 Vict.]*
Act, 1900.

A.D. 1900. General the provisions of section 7 of the Telegraph Act 1878 shall apply
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Urban District (instead of the provisions of section 30 of the Tramways Act 1870) to any
Council. such alteration.

(B) In the event of the tramways or any part thereof being worked by electricity the following provisions shall have effect:—

(1) The Promoters shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by Her Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. If any question arises as to whether the Promoters have constructed their electric lines or other works or work their undertaking in contravention of this sub-section such question shall be determined by arbitration and the Promoters shall be bound to make any alterations in or additions to their system which may be directed by the arbitrator.

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking of the Promoters the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection.

(3)—(a) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs or the laying of lines crossing the line of the Postmaster-General at right angles at the point of shortest distance and so continuing for a distance of six feet on each side of such point) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work:

(b) Any difference which arises between the Postmaster-General and the Promoters or their agents with respect to any requirements so made shall be determined by arbitration.

(4) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues.

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

- (5) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of the act or execution of the work was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reasons for doing or executing the same without previous notice. A.D. 1900.
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Urban District
Council.
- (6) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work.
- (7) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order.
- (8) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882.
- (9) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act.
- (10) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid.
- (11) In this section the expression "the Promoters" includes their lessees and any person owning working or running carriages over any of the tramways of the Promoters.

Traffic upon Tramways.

28. The tramways may be used for the purpose of conveying passengers animals goods minerals and parcels. Traffic upon
tramways.

29. The Promoters' lessees shall not be bound to carry unless they think fit any animals goods minerals or parcels other than passengers' luggage not exceeding twenty-eight pounds in weight. Promoters not
bound to carry
animals
goods &c.

Rates.

30. The Promoters' lessees may demand and take for every passenger travelling upon the tramways or any part thereof including every expense incidental to such conveyance any rates or charges not exceeding one penny per mile (and for this purpose a fraction of a mile beyond an integral number of miles shall be deemed a mile) but in no case shall the Promoters' lessees be bound to charge a less sum than twopence. Passengers'
fares.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 Vict.]
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As to fares on
Sundays and
holidays.

Passengers'
luggage.

Cheap fares
for labouring
classes.

Rates for
animals
goods &c.

Payment of
rates.

Periodical
revision of
rates and
charges.

31. The Promoters or any person working or using the tramways shall not take or demand on Sunday or any public or local holiday any higher rates or charges than those levied by them on ordinary week days.

32. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof Provided that all such personal luggage be carried by hand and at the responsibility of the passenger and do not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

33.--(1) The Promoters' lessees at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artizans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Promoters' lessees in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Promoters' lessees to provide such service as may appear to the Board to be reasonable.

(3) The Promoters' lessees shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

34. The Promoters' lessees may demand and take in respect of any animals goods minerals or parcels conveyed by them on the tramways or any part thereof including every expense incidental to such conveyance any rates or charges not exceeding the rates and charges specified in the schedule to this Order annexed subject to the regulations in that behalf therein contained.

35. The rates and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Promoters' lessees may by notice to be annexed to the list of rates and charges appoint.

36. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the Promoters or by their lessees or by twenty inhabitant ratepayers of the district that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if such referee reports

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
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that it has been proved to his satisfaction that all or any of the rates or charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Order authorised Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Promoters or their lessees.

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Council.

Miscellaneous.

37. Notwithstanding anything in the Tramways Act 1870 to the contrary the Council may place and run carriages on and may work and may demand and take rates and charges in respect of the tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks horses harness engines machinery apparatus steam cable electrical and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the said tramways by animal or mechanical power and in such case the several provisions in this Order contained relating to the working of the tramways and the taking of rates and charges therefor shall extend and apply mutatis mutandis to and in relation to the Council and the Council may work such tramways and demand and recover such rates and charges accordingly but nothing in this section shall empower the Council to construct any station for generating electrical power nor to create or permit a nuisance.

Power to
Council to
work tram-
ways.

38. The regulations authorised by the Tramways Act 1870 to be made by the Promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the Council be made by the Council alone.

Regulations.

39. The Promoters may with the consent of the Board of Trade from time time but subject to the provisions of this Order—

Working
agreements.

- (a) enter into and fulfil contracts and agreements with any person or local authority authorised to enter into such contracts for and in relation to the construction maintenance or working of the whole or any part of the tramways and may enter into and carry into effect contracts and agreements with any person or local authority owning or lawfully working or using any tramways for and in relation to the interchange accommodation and forwarding of carriages passengers and traffic on from or to any of such tramways on to or from the tramways or any of them and for and in relation to the user by the contracting parties or any or either of them of the whole or any part of their respective tramway undertakings or of any or either of them respectively and to the fixing collecting and apportionment of rates charges and other receipts; and
- (b) confirm any such contracts and agreements which may have been entered into before the confirmation of this Order.

**[Ch. cci.] Tramways Orders Confirmation (No. 4) [63 & 64 VICT.]
Act, 1900.**

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| <p>A.D. 1900.</p> <p><i>Gorton
Urban District
Council.</i></p> <p>Orders &c.
of the Board
of Trade.</p> | <p>40. All orders regulations and byelaws made and consents and certificates given by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board and when purporting to be so signed the same shall be deemed to be duly made in accordance with the provisions of this Order and to be orders and regulations within the meaning of the Documentary Evidence Acts 1868 and 1882 and may be proved accordingly.</p> |
| <p>Mortgages to
include rents
and rates.</p> | <p>41. The Promoters may include in any mortgage of the local rate made by them under section 20 of the Tramways Act 1870 the moneys coming to them out of the rents reserved under any lease made under the authority of this Order and the rates charges and sums authorised to be taken or received by them under the provisions of this Order.</p> |
| <p>Recovery of
penalties.</p> | <p>42. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction Acts.</p> |
| <p>Audit of
accounts.</p> | <p>43. Sections 247 and 250 of the Public Health Act 1875 shall apply to the audit of accounts of the receipts and expenditure of the Promoters and their officers with respect to the tramways as if such accounts related to receipts and expenditure under that Act.</p> |
| <p>Protection of
local authority.</p> | <p>44. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 is hereby incorporated with this Order and in construing that section for the purposes of this Order the expression "this Act" where used in that section shall mean this Order.</p> |
| <p>Form and
delivery of
notices.</p> | <p>45. With respect to notices and to the delivery thereof by or to the Promoters the following provisions shall have effect (that is to say) :—</p> <p>(1) Every notice shall be in writing and if given by the Promoters or by any local or road authority or company shall be signed by their clerk or secretary.</p> <p>(2) Any notice to be delivered by or to the Promoters to or by any body or any company or corporation may be delivered by being left at the principal office of such body company or corporation or at the office of the clerk to the Promoters as the case may be or by being sent by post in a registered letter addressed to their respective clerk or secretary at their principal office or to the clerk to the said Promoters.</p> |
| <p>Provisions as
to arbitration.</p> | <p>46. Where under the provisions of the Tramways Act 1870 and this Order any matter in difference is referred to the arbitration of any person nominated by the Board of Trade the provisions of the Arbitration Act 1889 shall apply to every such arbitration and the decision of the arbitrator shall be final and conclusive and binding on all parties and the costs of and incidental to the arbitration and award shall if either party so require be taxed and settled as between the parties by any one of the taxing masters of the High Court and such fees may be taken in respect of the taxation as may be fixed in pursuance of the enactments relating to the fees to be demanded and taken in the offices of such masters and all those enactments including the enactments relating to the taking of fees by means of stamps shall extend to the fees in respect of the said taxation.</p> |

47. Nothing in this Order contained shall exempt the Promoters or any person using the tramways or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of rates and charges authorised by this Order.

A.D. 1900.
Gorton
Urban District
Council.
Saving for
general Acts.

SCHEDULE.

RATES AND CHARGES FOR ANIMALS GOODS &C.

		Per mille.	
<i>Animals.</i>		s.	d.
For every horse mule or other beast of draught or burden	per head	0	4
For every ox cow bull or head of cattle	"	0	3
For every calf pig sheep or other small animal	"	0	1½
<i>Goods and Minerals.</i>			
For all coal coke culm charcoal cannel limestone chalk lime salt sand fire-clay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways	per ton	0	2
For all iron iron-ore pig-iron bar-iron rod-iron sheet-iron hoop-iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fire-clay) and for wrought iron not otherwise specifically classed herein and for heavy iron castings including railway chairs	per ton	0	2½
For all sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings	per ton	0	3
For cotton wools drugs and manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein	per ton	0	4
For every carriage of whatever description		1	0
<i>Parcels.</i>		Any distance.	
		s.	d.
For any parcel not exceeding in weight 7 lbs.	each	0	3
For any parcel exceeding 7 lbs. but not exceeding 14 lbs. in weight	each	0	5
For any parcel exceeding 14 lbs. but not exceeding 28 lbs. in weight	each	0	7
For any parcel exceeding 28 lbs. but not exceeding 56 lbs. in weight	each	0	9

[Ch. cci.] *Tramways Orders Confirmation (No. 4) [63 & 64 Vict.]*
Act, 1900.

A.D. 1900. For any parcel exceeding 56 lbs. in weight such sum as the person conveying the same may think fit.

*Gorton
Urban District
Council.*

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

For the Carriage of Single Articles of Great Weight.

Per mile.
—
s. d.

For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage exceeds four tons but does not exceed eight tons such sum as the person conveying the same may think fit not exceeding - - - per ton 2 0

For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage exceeds eight tons such sum as the person conveying the same may think fit.

Regulations as to Rates.

For articles or animals conveyed on the tramways for a less distance than a mile rates and charges as for one mile may be demanded.

A fraction of a mile beyond an integral number of miles shall be deemed a mile.

For a fraction of a ton rates and charges may be demanded and taken according to the number of the quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton.

With respect to all articles except stone and timber the weight shall be determined according to imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

PLYMOUTH CORPORATION.

A.D. 1900.

Order authorising the Mayor Aldermen and Burgesses of the Borough of Plymouth to construct additional Tramways in their Borough. *Plymouth Corporation.*

1. This Order may be cited as the Plymouth Corporation Tramways Order 1900. Short title.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order. Provided that the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any alteration of or interference with any telegraphic line belonging to or used by the Postmaster-General. The expression "telegraphic line" in this Order has the same meaning as in the Telegraph Act 1878. Incorporation of Acts.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings. Interpretation.

Provided that in this Order—

The expression "the borough" means the county borough of Plymouth;

The expression "the Corporation" means the mayor aldermen and burgesses of the borough acting by the council;

The expression "the tramways" means the tramways and works by this Order authorised;

The expression "the undertaking" means the undertaking by this Order authorised;

The expression "mechanical power" includes steam electrical and every other motive power not being animal power;

The expression "engine" includes motor.

4. The Corporation shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters." The Promoters.

5. The Promoters may subject to the provisions of this Order construct and maintain in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as "the deposited plans" and "the deposited sections") the tramways herein-after described with all proper rails plates sleepers channels junctions turntables turnouts crossings passing-places offices stables carriage engine boiler and dynamo houses sheds buildings works and conveniences connected therewith or for the purposes thereof. Provided that nothing in this Order or in any Act wholly or in part incorporated Construction of tramways.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
Act, 1900.

A.D. 1900. *Plymouth Corporation.* therewith shall extend to or authorise any interference with any works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways authorised by this Order will be wholly situate within the borough and are as follows (that is to say)—

Tramway No. 1 (double line 1 furlong 1·60 chains in length) commencing by a junction with the existing tramway of the Corporation at a point in Mutley Plain 1·22 chains measured in a northerly direction from the junction of the centre lines of Mutley Plain and the Connaught Avenue passing thence into and along Hyde Park Road and terminating at the junction of the centre lines of Hermitage Road and Hyde Park Road.

Provided that Tramway No. 1 shall not be constructed until the roadway has been widened so as to afford a space of not less than 9 feet 6 inches between the outside of the footpath on each side of the road and the nearest rail of the tramway.

Tramway No. 2 (double line 1 furlong 1·78 chains in length) to be situate in Hyde Park Road commencing at the termination of Tramway No. 1 and terminating at a point 2·15 chains measured in a northerly direction from the junction of the centre lines of Peverel Avenue and Hyde Park Road.

Provided that Tramway No. 2 shall not be constructed until the roadway has been widened so as to afford a space of not less than 9 feet 6 inches between the outside of the footpath on each side of the road and the nearest rail of the tramway.

Tramway No. 3 (4 furlongs 9·46 chains in length whereof 1 chain will be single line and 4 furlongs 8·46 chains will be double line) to be situate in a proposed new street in continuation of Hyde Park Road through the Pounds Estate commencing at the termination of Tramway No. 2 and passing thence into and along the said proposed new street and terminating therein at the junction of the said proposed new street with Milehouse Road at a point 9·80 chains from the junction of the centre lines of Milehouse Road and Mutley Lane measured in a south-westerly direction.

Tramway No. 3 will be laid as a double line throughout except between the point of termination thereof and a point 1 chain south-east of such termination where it will be laid as a single line.

Provided that Tramway No. 3 shall not be opened for public traffic until the said proposed new street in continuation of Hyde Park Road shall have become a highway repairable by the inhabitants at large.

Tramway No. 4 (double line 3 furlongs 7·65 chains in length) commencing by a junction with the existing tramway of the Promoters at a point in Beaumont Road 2·35 chains measured in a westerly direction from the junction of the centre lines of Beaumont Road and Tothill Road passing thence into and along Beaumont Road and terminating therein at its eastern end.

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

Provided that unless the Board of Trade otherwise consent no part of
Tramway No. 4 shall be constructed except as a single line unless and
until the road in which such part will be laid shall be of such width that a
space of not less than 9 feet 6 inches shall intervene between the outside
of the footpath on each side of the road and the nearest rail of the
tramway.

A.D. 1900.

*Plymouth
Corporation.*

Tramway No. 5 (double line 6 furlongs 9·24 chains in length) to be situate
in a proposed new street in continuation of Beaumont Road at the eastern
end thereof through the Little Saltram and Mount Gold Estates and
through land the property of the Promoters commencing at the termination
of Tramway No. 4 at the eastern end of Beaumont Road and terminating
at the western boundary fence of the field in the Mount Gold Estate and
numbered 58 on the Ordnance map published in 1895.

Provided that Tramway No. 5 shall not be opened for public traffic until
the proposed new street in continuation of Beaumont Road shall have
become a highway repairable by the inhabitants at large.

Provided always that nothing in this Order contained shall be deemed to
authorise such widening of roads or such construction of new streets or the
acquisition of property therefor as is in this section referred to.

6.—(1) Where any tramway constructed under this Order shall pass any
land or building vested in or under the control of the Secretary of State for
the War Department no cross-over passing-place siding junction or other work
opposite to such land or building shall be constructed until it shall have been
approved by the said Secretary of State or by an officer acting on his behalf
and if at any time it shall in the opinion of the said Secretary of State be
desirable that such cross-over passing-place siding junction or other work shall
be altered or removed the Corporation or their lessees shall alter or remove it
to the satisfaction of the Secretary of State within twenty-eight days from the
time at which they are called upon to do so.

For protection
of the Secretary
of State for
War.

(2) The Corporation or their lessees shall not permit any of their engines or
carriages to stop or stand upon such tramway opposite or near to the entrance
to any lands or buildings vested in or under the control of the said Secretary
of State in such manner as to interfere with access to or from such lands or
buildings.

7. The Promoters may with the consent of the Board of Trade lay down
double lines in lieu of single or single lines in lieu of double or interlacing lines
in lieu of double or single lines on any of the tramways for the time being
belonging to them and may with the like consent alter the position in the road
of any of such tramways or any part thereof respectively Provided that the
uppermost surface thereof shall be on a level with the surface of the road
Provided further that in the exercise of the powers of this section no rail shall
be so laid that a less space than nine feet six inches shall intervene between it
and the outside of the footpath on either side of the road if one third of the
owners or one third of the occupiers of the premises abutting on the place
where such less space shall intervene shall by writing under their hands

Alteration of
tramways.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 Vict.]
Act, 1900.

A.D. 1900.

Plymouth Corporation.

Additional cross-overs &c. may be made where necessary.

addressed and delivered to the Promoters within three weeks after receiving from the Promoters notice of their intention express their objection thereto.

8. The Promoters may subject to the provisions of this Order from time to time make maintain alter and remove all such cross-overs passing-places sidings loops triangles junctions and other works in addition to those particularly specified in and authorised by this Order or the other Acts and Orders relating to the tramways of the Promoters as they find necessary or convenient for the efficient working of the tramways for the time being belonging to the Promoters or any of them or for facilitating the traffic of the roads in which the same are laid or for providing access to any stables carriage-houses sheds or works of the Promoters or for effecting junctions with any tramways Provided that in the construction of any such works no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one third of the owners or one third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Promoters within three weeks after receiving from the Promoters notice of their intention express their objection thereto

Incorporation of provisions of Order of 1893.

9. The following provisions of the Plymouth Corporation Tramways Order 1893 shall subject to the provisions of this Order and so far as the same are applicable in that behalf extend and apply mutatis mutandis to and in relation to the tramways authorised by this Order as if such tramways had been authorised by the Plymouth Corporation Tramways Order 1893 (namely):—

Section 5 (Lands by agreement);

Section 10 (Gauge of tramways);

Section 11 (Provisions as to construction of tramways);

Section 12 (Mode of formation of tramways);

Section 13 (Penalty for not maintaining rails and roads in good condition);

Section 15 (Temporary tramways may be made where necessary);

Section 16 (Application of road materials excavated in construction of works);

Section 17 (Tramways not to be opened until certified by Board of Trade);

Section 21 (Applying provisions of Acts of 1882 and 1892 as to traffic tolls &c.);

Section 22 (Provisions as to arbitration);

Section 23 (Form and delivery of notices);

Section 25 (Audit of accounts);

Section 27 (Saving for general Acts).

Application of provisions of Act of 1898.

10. The following provisions of the Plymouth Corporation Act 1898 shall subject to the provisions of this Order and so far as the same are applicable in that behalf extend and apply mutatis mutandis to and in relation to the tramways authorised by this Order as if such tramways had been authorised by the Plymouth Corporation Act 1898 (namely):—

Section 44 (Provisions as to motive power);

Section 46 (Restrictions on use of electric power);

Section 47 (For protection of the Postmaster-General);

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

Section 49 (Byelaws);

Section 50 (Amendment of the Tramways Act 1870 as to byelaws by local authority);

Section 51 (Order &c. of the Board of Trade);

Section 52 (Power to Corporation to work tramways);

Section 53 (Fares on Sundays or public holidays not to be raised); and

Section 83 (Recovery of penalties &c.).

A.D. 1900.

—
Plymouth Corporation.

11.—(1) Notwithstanding anything in any Act or Order relating to the promoters' tramways contained the promoters' lessees at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artizans mechanics and daily labourers each way over the whole of the promoters' tramways every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the promoters' lessees in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

Cheap fares
for labouring
classes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the promoters' lessees to provide such service as may appear to the Board to be reasonable.

(3) The promoters' lessees shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

12. For the purpose of working by mechanical power any tramways for the time being belonging to the Promoters they may supply electrical energy from any generating station constructed by them in pursuance of powers conferred or to be conferred upon them and may subject to the provisions of this Order construct maintain and use stations for generating electrical power with all necessary or proper machinery dynamos engines buildings works and conveniences and may place construct erect lay down make and maintain on above or below the surface of any street or road posts brackets electric conductors wires apparatus subways tunnels cables tubes and openings and may with the consent of the owners and occupiers of any houses or buildings affix to such houses or buildings and maintain brackets rosettes electric conductors wires and apparatus.

Mechanical
power works.

13. All works to be executed by the Promoters in any road for working the tramways by mechanical power in pursuance of the powers of this Order shall be deemed to be works of a tramway subject in all respects (save as by this Order otherwise expressly prescribed) to the provisions of section 30 of the Tramways Act 1870 as if they had been therein expressly mentioned.

Mechanical
power works
to be subject
to section 30
of Tramways
Act 1870.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 Vict.]
Act, 1900.

A.D. 1900.

TAUNTON.

*Taunton. Order authorising the Construction of Tramways in the Borough
of Taunton in the County of Somerset.*

Preliminary.

- Short title. 1. This Order may be cited as the Taunton Tramways Order 1900.
- Incorporation
of Acts. 2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order.
- Interpretation. 3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order (unless the context otherwise requires) the same respective meanings.
- Provided that in this Order—
- The expressions “the tramways” and “the undertaking” mean respectively the tramways and works and the undertaking by this Order authorised;
- The expression “mechanical power” includes steam electrical and every other motive power not being animal power The expression “engine” includes motor.

Promoters.

- The Promoters. 4. The Taunton and West Somerset Electric Railways and Tramways Company Limited of 3 Hammet Street Taunton in the county of Somerset shall be the Promoters for the purposes of this Order and are in this Order referred to as “the Promoters.”

Lands.

- Lands by
agreement. 5. The Promoters may by agreement from time to time purchase take on lease and acquire for the purposes of the undertaking such lands as they may require and may from time to time sell let or dispose of any such lands not required for such purposes Provided that they shall not at any time hold for such purposes more than two acres of land and that nothing in this Order shall exempt the Promoters from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land acquired by them under this section.

Construction of Tramways.

- Power to
construct
tramways. 6. The Promoters may within two years from the commencement of this Order or within such extended time as the Board of Trade shall approve construct and thereafter maintain subject to the provisions of this Order and in accordance with the plans and sections deposited at the office of the Board of Trade for the purposes of this Order (which plans and sections are in this Order referred to respectively as the “deposited plans” and the

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

"deposited sections") the tramways herein-after described with all proper rails points cross-overs plates sleepers offices weighbridges stables carriage-houses engine-sheds warehouses works and conveniences connected therewith or for the purposes thereof and may work and use the same.

A.D. 1900.

Taunton.

The tramways authorised by this Order will be situate wholly in the parishes of Taunton St. James and Taunton St. Mary Magdalene in the borough of Taunton in the county of Somerset and are—

Tramway No. 1. 7 furlongs in length of which 5 furlongs 6·50 chains is single line and 1 furlong 3·50 chains is double line commencing in Station Road in the parish of St. James Within the borough of Taunton at a point 15 feet or thereabouts to the east of the northern jamb of the doorway in the Great Western Railway engine shed and passing thence along the Station Road Bridge Street crossing the River Tone by the Tone Bridge in the parishes of St. James Within and St. Mary Magdalene Within the said borough or one of them thence in the said parish of St. Mary Magdalene along North Street the eastern branch of Fore Street and East Street terminating at a point in East Street in the said parishes of St. Mary Magdalene and St. James Within or one of them at a point 25 feet or thereabouts to the north of the north-west corner of the drinking fountain at the junction of Silver Street and East Street.

The said Tramway No. 1 will be laid as a single line except between the following points where it will be laid as a double line viz. :—

- (a) From its commencement for a length of 2·50 chains.
- (b) In Station Road for a length of 2 chains or thereabouts between a point opposite the south-west corner of Albemarle Road at its junction with Station Road and a point 8 feet or thereabouts north of the north-west corner of the junction of Belvedere Road with Station Road.
- (c) In Bridge Street for a length of 3 chains between a point distant 42 feet or thereabouts from the north-west corner of the Black Horse Inn measured in a westerly direction and a point directly opposite the entrance doorway to Mr. Winter's shop situate in Bridge Street and adjoining Wood Street.
- (d) In North Street for a length of 3 chains between a point distant 39 feet 6 inches or thereabouts measured in a southerly direction from a corner of the Spread Eagle Inn to a point distant 100 feet or thereabouts measured in a northerly direction from the monument at the northern end of the Parade.
- (e) In East Street from a point 3 chains from its termination to its termination.

Tramway No. 1a. 1 furlong in length commencing in the said parishes of St. Mary Magdalene and St. James Within or one of them by a junction with Tramway No. 1 at a point opposite the court separating Nos. 3 and 4 Bridge Street passing thence in the parish of St. James Within along St. James Street and terminating at the Electric Lighting Works by a curve in the yard thereof.

[Ch. cci.] *Tramways Orders Confirmation* (No. 4) [63 & 64 VICT.]
Act, 1900.

A.D. 1900.

Taunton.

The said Tramway No. 1a will be laid as a single line throughout.

Tramway No. 1a shall not except with the consent of the Board of Trade be used otherwise than as a means of access to works sheds or depôts.

Tramway No. 2. 3 furlongs 0·6 chain in length of which 2 furlongs 4·60 chains is single line and 6 chains is double line commencing in the parishes of St. Mary Magdalene and St. James Within or one of them by a junction with the termination of Tramway No. 1 and passing thence along East Reach and terminating in the said parishes of St. Mary Magdalene and St. James Within or one of them at a point in East Reach coinciding with the intersection of Alfred Street and East Reach.

The said Tramway No. 2 will be laid as a single line except between the following points where it will be laid as a double line viz. :—

(a) In East Reach for a length of 3 chains between a point distant 75 feet 9 inches or thereabouts measured in a south-westerly direction from the western corner of Haydon Road at its junction with East Reach and a point distant 66 feet or thereabouts measured in a northerly direction from the eastern side of the gateway entrance to the Waggon and Horses Inn.

(b) In East Reach from a point 3 chains from its termination to its termination.

For the protection of the
Great Western
Railway
Company.

7.—(1) The Promoters shall so construct maintain and use so much of Tramway No. 1 as passes under the bridge carrying the railway of the Great Western Railway Company (herein-after referred to as "the company") over Station Road as not to injuriously affect the bridge or the approaches thereto and in the event of any injury being occasioned to such bridge or approaches by the construction maintenance or user of the said tramway under the same the company may make good the injury and may recover from the Promoters the expenses of so doing as a simple contract debt.

(2) The Promoters shall give seven days' notice in writing to the company of their intention to commence any works under the said bridge or which may affect or interfere with the structural works of the said bridge and shall at the same time send sufficient specifications or other information to show the nature of such works and such works shall be constructed under the superintendence and to the reasonable satisfaction of the company and so as not in any way to interfere with the traffic on the railway of the company.

(3) Any additional expense in the maintenance of the said bridge or of the approaches thereto occasioned by the construction of the said tramway shall be borne by the Promoters.

(4) If any question arises between the Promoters and the company under this Order that question shall be referred to arbitration under this Order.

Position in
road of
tramways.

8. The tramways shall be laid throughout along the centre of the road in such a manner that a line drawn midway between the external lines of the tramways which are next the kerb of the footpath may coincide as nearly as may be with the centre line of the carriage-way Provided that any portion

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

or portions of the tramways may be laid otherwise than along the centre of the road if the Board of Trade at any time sanction their being so laid and provided also that where according to the deposited plans it is proposed to lay down in any road a single line of tramway and a less space than 9 feet 6 inches intervenes between the outside of the footpath on either side of the road and the nearest rail of the tramway the Promoters shall if required by the Board of Trade in lieu of such single line lay down a double line of tramway with proper cross-overs and every such double line shall be so laid that only one of such lines can be used at one and the same time.

A.D. 1900.
Taunton.

9. The tramways shall be constructed on a gauge of 3 feet 6 inches or such other gauge as may from time to time be determined by the Board of Trade with the assent of the Promoters Provided always that in the event of the tramways being constructed on a less gauge than 4 feet 8½ inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramway beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramways but no carriage or engine used on the tramways shall exceed 6 feet 6 inches in width or such less width as may be prescribed by the Board of Trade.

Gauge of tramways.

10. In addition to the requirements of section 26 of the Tramways Act 1870 the Promoters shall at the same time as they give notice to the road authority of their intention to open or break up any road for the purpose of constructing laying down maintaining and renewing any of the tramways lay before the Board of Trade and the road authority a plan showing the proposed mode of constructing laying down maintaining and renewing such tramways and a statement of the materials intended to be used therein and the Promoters shall not commence the construction laying down maintenance and renewal of any of the tramways or part of any of the tramways respectively except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and the road authority and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by section 26 of the said Act.

Provisions as to construction of tramways.

11.—(1) The Promoters shall pave with wood blocks so much of the following portions of the tramways as the road authority shall direct viz. :—

Repair of part of road where tramway is laid.

(a) Tramway No. 1 From its commencement to the east end of the London Hotel.

(b) Tramway No. 1a Throughout its entire length.

(c) So much of Tramway No. 2 as lies in front of the Taunton and Somerset Hospital in East Reach and a reasonable distance on either side of the said Institution.

The said blocks shall be laid on concrete and longitudinal sleepers shall be used to keep the said blocks in place and the said blocks shall be laid for 18 inches on either side of the tramways.

(2) Any repair or restoration of or any works upon any road referred to in this section or in section 28 of the Tramways Act 1870 may be executed by the road authority at the reasonable costs and expenses of the

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A.D. 1900. Promoters If such authority intend to execute such works themselves they shall within fourteen days give notice of that intention and shall commence execute and complete the works with all reasonable despatch.
Taunton.

(3) Any question arising between the Promoters and the road authority under this section shall be "a matter in difference" within section 33 of the Tramways Act 1870.

Promoters
and road
authority may
contract for
repairing road
and construct-
ing tramways.

12. The Promoters and any road authority may subject to the provisions of this Order from time to time enter into any agreements with respect to the constructing maintaining removing renewing and repairing of the tramways situate within the district of such road authority and the rails plates sleepers and the works connected therewith provided that the expense of carrying out such agreements shall be borne by the Promoters.

Application of
road materials
excavated in
construction
of works.

13. Any paving metalling or material excavated by the Promoters from any road under the jurisdiction or control of any road authority may be applied by the Promoters so far as may be necessary in or towards the reinstating of such road and the maintenance for six months after completion of the tramways within the district of such road authority of so much of the road on either side of such tramways as the Promoters are by this Order required to maintain and the Promoters shall if so required deliver the surplus paving metalling or other material not used or required to be retained for the purposes aforesaid to the surveyor of the road authority or to such person as he may appoint to receive the same at such place as he may direct Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit Any difference between the Promoters and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by a referee to be nominated by the Board of Trade on the application of either party.

Rails of
tramways.

14. The rails of the tramways shall be such as the Board of Trade may approve.

Penalty for not
maintaining
rails and road
in good
condition.

15. The Promoters shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the sub-structure upon which the same rest and if the Promoters at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues.

In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramways or any portion thereof is situate or by twenty inhabitant ratepayers of the district that the Promoters have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the

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Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Promoters to such penalty or penalties in respect thereof as is or are by this section imposed.

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Taunton.

16. Every local authority shall at all time have free access to and communication with all their sewers and drains and power to lay lateral and private drains to communicate therewith without the consent and concurrence of the Promoters and the provisions contained in the 32nd and 33rd sections of the Tramways Act 1870 shall be applicable in the case of any sewer or private drain of or under the control of the local authority as if the same were a pipe for the supply of gas or water.

Local authority to have access to sewers.

17. If any road authority hereafter alter the level of any road along or across which any part of the tramways is laid or authorised to be laid the Promoters may and shall at their own cost alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Tramways to be kept on level of surface of road.

18. The Promoters may subject to the provisions of this Order and with the consent of the road authority from time to time make maintain alter or remove all such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Order as may from time to time be necessary or convenient for the efficient working of the tramways or any of them or for providing access to any stables engine-houses carriage-houses sheds or works of the Promoters Provided that in the construction of any such works no rail shall be so laid that a less space than 9 feet 6 inches shall intervene between it and the outside of the footpath on either side of the road if one-third of the owners or one-third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Promoters within three weeks after receiving from the Promoters notice of their intention express their objection thereto Provided also that the number and situation of such crossings passing-places sidings junctions and other works shall be determined by the road authority and if any difference arise between the Promoters and the road authority with respect to the number and situation of any such crossings passing-places sidings junctions or works the same shall be settled in the manner specified in section 33 of the Tramways Act 1870 for the settlement of the difference in the said section mentioned.

Additional cross-overs &c. may be made where necessary.

19. Where by reason of the execution of any work affecting the surface or soil of any road along which any of the tramways are laid it is in the opinion of the road authority necessary or expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Promoters may subject to such conditions and in accordance in all respects with such

Temporary tramways may be made where necessary.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
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A.D. 1900. regulations as the road authority may from time to time make construct in
Taunton. the same or any adjacent road and with the like consent subject to the like conditions and in accordance with the like regulations maintain so long as occasion may require a temporary tramway or tramways in lieu of the tramway or part of a tramway so removed or discontinued.

If any difference arise between the Promoters and any road authority with respect to the reasonableness of any conditions or regulations or with respect to the mode of constructing any temporary tramway or tramways under the authority of this section the same shall be deemed a matter in difference within section 33 of the Tramways Act 1870 and the provisions as to arbitration of the said section and of this Order shall apply accordingly.

As to man-
holes.

20. When the tramways are constructed or intended to be constructed or reconstructed over any manhole or entrance into any sewer of the local authority or so close to such manhole or entrance as to make the use thereof dangerous the local authority shall without any unnecessary delay and at the expense of the Promoters alter the position of such manhole or entrance in such manner as may be reasonably necessary. If any question between the local authority and the Promoters arises under this section that question shall be referred to arbitration.

As to removal
of snow &c.

21. If the Promoters at any time find it necessary or desirable to remove snow or other matter impeding the traffic on the tramways the Promoters shall at their own cost remove the snow or other matter to the side of the road but so as not to impede or obstruct the ordinary traffic on the road and the Promoters shall not use salt or other unsuitable material for thawing the snow on any road.

Tramways not
to be opened
until certified
by Board of
Trade.

22. The tramways shall not be opened for public traffic until the same have been inspected and certified to be fit for such traffic by the Board of Trade.

Motive Power.

Provisions as
to motive
power.

23. The carriages used on the tramways may subject to the provisions of this Order be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade and no animal power or mechanical power other than electrical power shall be used except with the consent of the local authority;
- (2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power on the tramways and for regulating the use of electrical power;
- (3) The Promoters or any company or person using any mechanical power on the tramways contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing

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offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof; A.D. 1900.
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(4) The Board of Trade if they are of opinion—

(a) That the Promoters or such company or person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered ; or

(b) That the use of mechanical power as authorised under this Order is a danger to the passengers or the public ;

may by order either direct the Promoters or such company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Promoters or such company or person shall comply with every such order In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

24. For the purpose of working the tramways by mechanical power the Promoters may subject to the provisions of this Order construct erect lay down and maintain on in under or over the surface of any street or road and may with the consent in writing of the owner and occupier of any house or building attach to such house or building such posts conductors wires tubes mains plates cables ropes and apparatus and may make and maintain such openings and ways in on or under any such surface as may be necessary or convenient either for the working of the tramways or for connecting any portions of such tramways or for providing access to or forming connexions with any generating station or stations engines machinery or apparatus. Mechanical power works.

Provided always that with regard to any posts or columns to be erected under this section including the arms or brackets thereof the following provisions shall have effect (that is to say) :

(a) Their position and design shall be subject to the approval of the local authority ;

(b) They shall not be used for purposes of advertising.

Any difference between the local authority and the Promoters under this proviso shall be a “ matter in difference ” within section 33 of the Tramways Act 1870.

25. All works to be executed by the Promoters in any road for working the tramways by mechanical power shall be deemed to be works of a tramway subject in all respects (save as by this Order otherwise expressly provided) to the provisions of section 30 of the Tramways Act 1870 as if they had been therein expressly mentioned. Mechanical power works to be subject to section 30 of Tramways Act 1870.

26. Subject to the provisions of this Order the Board of Trade may make byelaws with regard to any part of the trainways upon which mechanical power may be used for all or any of the following purposes (that is to say) :— Byelaws.

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages ;

For regulating the emission of smoke or steam from engines used on the tramways ;

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For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety ;

For regulating the entrance to exit from and accommodation in the carriages used on the tramway and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages ;

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere.

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

Amendment of
the Tramways
Act 1870 as to
byelaws by
local authority.

27. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramway shall not authorise the local authority to make any byelaw sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which engines are to be driven or propelled on the tramways under the authority of this Order but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

Special pro-
visions as to
use of electrical
power as
motive power.

28. The following provisions shall apply to the use of electrical power under this Order unless such power is entirely contained in and carried along with the carriages:—

- (1) The Promoters shall employ either insulated returns or uninsulated metallic returns of low resistance ;
- (2) The Promoters shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communications or the currents in such wire line or apparatus ;
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return ;
- (4) The Promoters shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Promoters

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either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking;

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- (5) At the expiration of two years from the passing of the Act containing this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents;
- (6) If any difference arises between the Promoters and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be;
- (7) The expression "the Promoters" in this section shall include any person owning working or running carriages over any tramway of the Promoters.

29.—(a) Notwithstanding anything in this Order contained if any of the works authorised to be executed by this Order involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration.

For the
protection
of Postmaster-
General.

(b) In the event of the tramways or any portion thereof being worked by electricity the following provisions shall have effect:—

- (1) The Promoters shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by Her Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. If any question arises as to whether the Promoters have constructed their electric lines or other works or work their undertaking in contravention of this subsection such question shall be determined by arbitration and the Promoters shall be bound to make any alterations in or additions to their system which may be directed by the arbitrator;
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works

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or by the working of the undertaking of the Promoters the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

(3)—(a) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs or the laying of lines crossing the line of the Postmaster-General at right angles at the point of shortest distance and so continuing for a distance of six feet on each side of such point) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work ;

(b) Any difference which arises between the Postmaster-General and the Promoters or their agents with respect to any requirements so made shall be determined by arbitration :

(4) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :

(5) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of the act or execution of the work was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :

(6) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :

(7) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order :

(8) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882 :

9) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an

arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act :

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(10) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Promoters by indictment action or otherwise in relation to any of the matters aforesaid :

(11) In this section the expression "the Promoters" includes any person owning working or running carriages over the tramway (or any part thereof) of the Promoters.

Traffic upon Tramways.

30. The tramways may be used for the purpose of conveying passengers animals goods minerals and parcels.

Traffic on tramways.

31. The Promoters shall not be bound to carry unless they think fit any animals goods minerals or parcels other than passengers' luggage not exceeding twenty-eight pounds in weight.

Promoters not bound to carry animals goods &c.

32. In case the Promoters carry animals goods minerals or parcels they may and when required by the local authority shall carry the same in separate carriages or separate parts of carriages set apart for that purpose Provided that this provision shall not apply to the carriage of passengers' luggage.

Provision as to conveyance of animals goods &c. in separate carriages.

33. No carriages or trucks adapted for use upon railways shall be used upon the tramways.

Carriages constructed for use on railways not to be used.

34. The Promoters shall not use or permit to be used in any road within the district of any local authority any bell or other continuous sounding instrument in or upon the carriages running on the tramways or upon the horses attached thereto except with the approval of such authority or by the direction of the Board of Trade.

As to use of bells.

35. The Promoters shall unless prevented by circumstances over which they have no control at all times after the opening of the tramways or any part thereof for public traffic provide such service of cars as may be reasonably required in the public interests and the Promoters shall be liable to a penalty not exceeding five pounds for every day on which they shall fail to comply with the provisions of the section Any question which may arise as to the service of cars required in the public interests may be determined on the application of the Promoters or of the local authority or other body or person by the Board of Trade whose decision shall be final and conclusive.

Service of cars.

36. Subject to the provisions of this Order and of any regulations made under this Order by the Board of Trade and of any byelaws for the time being in force with respect to the tramways any local authority or road authority may at such times and in such manner as they think fit between the hours of twelve at night and five in the morning but so as not to unduly

Local authorities and road authorities may use tramways for certain purposes:

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impede obstruct or interfere with the ordinary traffic on the tramways use the tramways within their district by carriages moved by horses or otherwise for the removal of night soil and house refuse and for the conveyance of scavenging stuff road metal and other materials required by the works of such authority free of all tolls and charges in respect of such use Subject as aforesaid any local authority or road authority may enter into agreements with the Promoters for the purposes of this section and such authority shall have power to form connections between the tramways and any yards or works belonging to such authority provided that in the construction of any such connection no damage shall be done to the tramways and they shall have first submitted to the Promoters plans showing such connections or works and the mode of constructing the same and if any question arises as to such plans or the mode of constructing such works that question shall be referred to arbitration under this Order Provided that such authority shall not save by agreement with the Promoters be entitled to use or employ for such purposes any carriages trucks horses electric current or other motive power or officers and servants of the Promoters Provided also that such authority shall indemnify the Promoters against any damage done to the permanent way by such use.

Agreements
between
Promoters
and road
authorities
as to user and
for facilitating
traffic on
tramways.

37. The Promoters and any local or road authority may subject to the provisions of this Order from time to time enter into any agreements with respect to the user of the tramways situate within the district of such local or road authority and for facilitating the passage of the traffic over the same.

Rates.

Tolls for
passengers.

38. The Promoters may demand and take for every passenger travelling upon the tramways or any portion thereof including every expense incidental to such conveyance any tolls or charges not exceeding one penny per mile and in computing the said tolls and charges a fraction of a mile shall be deemed a mile but the Promoters may charge for any distance exceeding half a mile and not exceeding two miles any sum not exceeding twopence.

As to fares on
Sundays and
holidays.

39. The Promoters or any person working or using the tramways shall not take or demand on Sunday or any public holiday any higher rates or charges than those levied by them on ordinary week days.

Passengers'
luggage.

40. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof provided that all such personal luggage be carried by hand and at the responsibility of the passenger and do not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

Cheap fares
for labouring
classes.

41.—(1) The Promoters at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artizans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning

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or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Promoters in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

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(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Promoters to provide such service as may appear to the Board to be reasonable.

(3) The Promoters shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

42. The Promoters may demand and take in respect of any animals goods materials articles or things conveyed by them on the tramways including every expense incidental to such conveyance any rates or charges not exceeding the rates and charges specified in the Schedule to this Order annexed subject to the regulations in that behalf therein contained.

Rates and
charges for
animals
goods &c.

43. The rates and charges by this Order authorised shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Promoters may by notice to be annexed to the list of rates and charges appoint.

Payment of
rates.

44. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the local authority of the district in which the tramways or such portion of the tramways are or is situate or by twenty inhabitant ratepayers of the district or by the Promoters that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if such referee reports that it has been proved to his satisfaction that all or any of the rates and charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section Provided that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Order authorised Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Promoters.

Periodical
revision of
rates and
charges.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
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Miscellaneous.

Taunton.
As to purchase
of the
undertaking
by local
authority.

45. Notwithstanding anything in this Order or in the Tramways Act 1870 contained—

(1) The powers of purchase given by section 43 of the Tramways Act 1870 shall not as regards the undertaking be exerciseable by the local authority in whose district such tramways are situate on the terms of purchase in the said section mentioned until the expiration of forty-two years from the date of the passing of the Act confirming this Order. The period of twenty-one years in the forty-third section of the Tramways Act 1870 mentioned shall in respect of the undertaking be deemed to be the period of forty-two years from the date of the passing of the Act confirming this Order and the periods of seven years in such section mentioned shall be deemed to be periods of seven years subsequent to such period of forty-two years.

(2) The powers of purchase given by section 43 of the Tramways Act 1870 shall be exerciseable as regards the undertaking at the expiration of a period of thirty-five years from the passing of the Act confirming this Order upon payment to the Promoters of the fair market value thereof as a going concern but without any allowance for compulsory purchase such value to be in case of difference determined by an engineer or other fit person nominated as referee by the Board of Trade on the application of either party and the expense of the reference to be borne and paid as the referee directs and in such cases the period and the terms of purchase in the said section 43 mentioned shall as regards the said undertaking be deemed to be the respective period of thirty-five years and the terms of purchase by this subsection prescribed.

Saving as to
powers of
borrowing on
mortgage.

46. Nothing in this Order or in the Tramways Act 1870 contained shall prevent the Promoters borrowing moneys on the security of mortgages of the undertaking or shall make the consent or approval of the Board of Trade necessary to the validity or effect of any such mortgage. Provided that every mortgage of the undertaking shall be deemed to comprise all purchase money which may be paid to the Promoters in the event of a compulsory sale of the undertaking to the local authority under section 43 of the Tramways Act 1870 as hereby varied and that any mortgage granted by the Promoters shall not be a charge upon the undertaking in the event of the undertaking being purchased by the local authority under section 43 of the Tramways Act 1870 as hereby varied and that every mortgage deed granted by the Promoters shall be endorsed with notice to that effect.

Orders &c.
of the Board
of Trade.

47. All orders regulations and byelaws made consents approvals and certificates given by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board and when purporting to be so signed the same shall be deemed to be duly made in accordance with the provisions of this Order and to be orders and regulations within the meaning of the Documentary Evidence Acts 1868 and 1882 and may be proved accordingly.

[63 & 64 Vict.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

A.D. 1900.

48. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction Acts.

Taunton.
Recovery and application of penalties.

49. With respect to notices and to the delivery thereof by or to the Promoters the following provisions shall have effect (that is to say):—

Form and delivery of notices.

- (1) Every notice shall be in writing and if given by the promoters or by any local or road authority or company shall be signed by their clerk or secretary.
- (2) Any notice to be delivered by or to the Promoters to or by any body or any company or corporation may be delivered by being left at the principal office of such body company or corporation or at the office of the clerk to the Promoters as the case may be or by being sent by post in a registered letter addressed to their respective clerk or secretary at their principal office or to the clerk to the said Promoters.

50. Where under the provisions of the Tramways Act 1870 and this Order any matter in difference is referred to the arbitration of any person nominated by the Board of Trade the provisions of the Arbitration Act 1889 shall apply to every such arbitration and the decision of the arbitrator shall be final and conclusive and binding on all parties and the costs of and incidental to the arbitration and award shall if either party so require be taxed and settled as between the parties by any one of the taxing masters of the High Court and such fees may be taken in respect of the taxation as may be fixed in pursuance of the enactments relating to the fees to be demanded and taken in the offices of such masters and all those enactments including the enactments relating to the taking of fees by means of stamps shall extend to the fees in respect of the said taxation.

Provisions as to arbitration.

51. Nothing in this Order contained shall exempt the Promoters or any person using the tramways or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of rates and charges authorised by this Order.

Saving for general Acts.

SCHEDULE.

RATES AND CHARGES FOR ANIMALS, GOODS &c.

		Per Mile.	
<i>Animals.</i>		s.	d.
For every horse mule or other beast of draught or burden	per head	0	4
For every ox cow bull or head of cattle	- - - - - „	0	3
For every calf pig sheep or other small animal	- - - - - „	0	1½
<i>Goods and Minerals.</i>			
For all coals coke culm charcoal cannel limestone chalk lime salt sand fire-clay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways		per ton	0 2

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
Act, 1900.

A.D. 1900.
Taunton.

	Per Mile.
	<u>s. d.</u>
For all iron ironstone iron ore pig-iron bar-iron rod-iron sheet-iron hoop-iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fire-clay) and for wrought iron not otherwise specially classed herein and for heavy iron castings including railway chairs - - - - - per ton	0 2½
For all sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings - - - - - per ton	0 3
For cotton wools drugs manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein - - - - - per ton	0 4
For every carriage of whatever description - - - - -	1 0

Small Parcels.

	Any Distance.
	<u>s. d.</u>
For any parcel not exceeding seven pounds in weight - - - - -	0 2
For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight - - - - -	0 4
For any parcel exceeding fourteen pounds and not exceeding twenty- eight pounds in weight - - - - -	0 6
For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight - - - - -	0 9
For any parcel exceeding fifty-six pounds but not exceeding five hundred pounds in weight such sum as the Promoters may think fit.	

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

For the Carriage of Single Articles of Great Weight.

	Per Mile.
	<u>s. d.</u>
The Promoters shall not be bound to carry single articles of great weight but if they do carry such articles they may charge—	
For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage exceeds four tons but does not exceed eight tons such sum as the Promoters may think fit not exceeding - - - - - per ton	2 0
For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage exceeds eight tons such sums as the Promoters may think fit.	

Regulations as to Rates.

For articles or animals conveyed on the tramways for a less distance than a mile rates and charges as for one mile may be demanded.

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

A fraction of a mile beyond an integral number of miles shall be deemed a mile. A.D. 1900.

For a fraction of a ton rates and charges may be demanded and taken according to the number of the quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton. *Taunton.*

With respect to all articles except stone and timber the weight shall be determined according to Imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so on in proportion for any smaller quantity.

In the case of goods and single articles of great weight the Promoters may demand such charges as are reasonable for loading and unloading the same and if any difference shall arise as to the reasonableness of any such charge the matter in difference shall be settled by the Board of Trade.

WARRINGTON CORPORATION.

Order authorising the Mayor Aldermen and Burgesses of the Borough of Warrington to construct Tramways and for other purposes. *Warrington Corporation.*

Preliminary.

1. This Order may be cited as the Warrington Corporation Tramways Order 1900. Short title.

2. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking) and of the Tramways Act 1870 are hereby incorporated with this Order except where the same are inconsistent with or expressly varied by this Order. Incorporation of Acts.

3. The several words terms and expressions to which by the Acts in whole or in part incorporated with this Order meanings are assigned have in this Order the same respective meanings. Interpretation.

Provided that in this Order —

The expressions "the tramways" and "the undertaking" mean respectively the tramways and works and the undertaking by this Order authorised;

The expression "the borough" means the borough of Warrington in the county palatine of Lancaster;

The expression "the Corporation" means the mayor aldermen and burgesses of the borough acting by the Council;

The expression "mechanical power" includes steam gas air electrical and every other motive power not being animal power;

The expression "engine" includes motor.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
Act, 1900.

A.D. 1900.

*Warrington
Corporation.*

The Promoters.

Promoters.

4. The Corporation shall be the Promoters for the purposes of this Order and are in this Order referred to as "the Promoters."

Lands by
agreement.

5. The Promoters may—

(a) Subject to the sanction of the Local Government Board and under such conditions as they may prescribe from time to time appropriate and use for any of the purposes of this Order but subject to the provisions (if any) under which such lands were respectively acquired any lands not dedicated to public use from time to time vested in them being part of their corporate estates ;

(b) By agreement from time to time purchase and acquire for the purposes of the undertaking such lands as they may require and may from time to time sell or dispose of any such lands which may not be necessary for such purposes Provided that all sums received by the Promoters from the sale of such lands or from fines or premiums on leases of the same shall be applied solely in repayment of outstanding loans and that such moneys shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board:

Provided that they shall not at any time hold for such purposes more than five acres of land Provided always that nothing in this Order shall exonerate the Promoters from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon lands appropriated or taken under the powers of this section.

Construction of Tramways.

Construction of
tramways.

6. The Promoters may subject to the provisions of this Order :—

(a) Construct and maintain in accordance with the plans and sections deposited at the Office of the Board of Trade for the purposes of this Order as the same have been amended previous to the passing of the Act confirming this Order (which plans and sections so amended as aforesaid are in this Order referred to as "the deposited plans" and "the deposited sections") the Tramways herein-after described with all proper rails points junctions plates works and conveniences connected therewith or for the purposes thereof.

(b) Erect or construct on any lands taken or appropriated under the powers of this Order any offices stables sheds workshops stores waiting-rooms or other buildings yards works and conveniences for the purposes of the undertaking.

Provided that nothing in this Order or in any Act wholly or in part incorporated therewith shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

Provided also that notwithstanding anything shown on the deposited plans the distance between the centres of double lines shall not without the consent

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

in writing of the Board of Trade exceed what is necessary to afford a clearance of 15 inches between the sides of cars passing one another. A.D. 1900.

The Tramways will be wholly situated within the borough and are as follows (that is to say):— *Warrington Corporation.*

Tramway No. 1 (1 mile 0 furlongs and 9·30 chains in length whereof 6 furlongs 4·80 chains will be single line and 2 furlongs 4·50 chains will be double line) commencing at the centre of Mill Bridge carrying the Liverpool Road over Sankey Brook passing thence along Liverpool Road Bank Quay Bridge Sankey Street and terminating in Sankey Street 33 yards measured in an easterly direction from the junction of that street and Arpley Street.

Tramway No. 1 will be laid as a single line throughout except between the points in Liverpool Road herein-after specified where it will be double:

- (a) From the commencement of the Tramway to a point opposite 16 yards westwards of Clare Street.
- (b) From a point 77 yards westwards of Owen Street to a point opposite Owen Street.
- (c) From a point opposite the level crossing of the London and North Western Railway (Garston and Warrington Line) adjoining the Coach and Horses public-house to a point opposite the eastern boundary of St. Luke's Church enclosure.
- (d) From a point opposite Howard's Lane to a point 77 yards eastwards.
- (e) From a point opposite Green Street to a point 33 yards westwards of Milner Street.
- (f) On Bank Quay Bridge from a point 40 yards eastward of Factory Lane to a point 66 yards westward from Parker Street.

Tramway No. 2 (3 furlongs 9·25 chains in length whereof 1 furlong 3·70 chains will be single line and 2 furlongs 5·55 chains will be double line) commencing by a junction with Tramway No. 1 at its termination in Sankey Street passing thence along Sankey Street Winmarleigh Street Palmyra Square (crossing Bold Street) Suez Street (crossing Cairo Street) Rylands Street Bridge Street (which is now being widened by the Corporation of Warrington) and terminating in Bridge Street at a point measured 50 yards in a northerly direction from the northern corner of the western parapet of Warrington Bridge.

Tramway No. 2 will be laid as a double line throughout excepting between the points herein-after specified where it will be laid as a single line:—

- (a) In Winmarleigh Street from a point 45 yards south of Sankey Street to a point 45 yards north of Palmyra Square.
- (b) In Palmyra Square from a point 13 yards west of Springfield Street at its junction with Palmyra Square to a point 50 yards westward of Bold Street.
- (c) In Suez Street from a point 21 yards west of Cairo Street to a point in Rylands Street 53 yards westward of Bridge Street.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 Vict.]
Act, 1900.

A.D. 1900.
Warrington
Corporation.

Provided that notwithstanding anything shown on the plans Tramway No. 2 shall be laid in Winmarleigh Street and Palmyra Square in the middle of the road.

Tramway No. 3 (2 furlongs 7·85 chains in length whereof 2 furlongs 4·35 chains will be single line and 3·50 chains will be double line) commencing by a junction with Tramway No. 2 at its termination in Bridge Street passing thence along Bridge Street Mersey Street Academy Street Buttermarket Street and terminating in Buttermarket Street opposite the Britannia Inn at a point 20 yards measured in a south-easterly direction from the south-west corner of Scotland Road.

Provided that Tramway No. 3 shall not be opened for traffic unless and until the roadway be widened so as to allow a width of 9 feet 6 inches on either side between the kerb and the nearest rail of the tramway.

Tramway No. 3A (0·85 chain in length whereof the whole will be single line) commencing by a junction with Tramway No. 3 in Mersey Street at a point measured 32 yards in a north-easterly direction from the junction of Lower Bank Street and Mersey Street and terminating at the entrance gateway to the Old Gas works of the Warrington Corporation in Mersey Street.

Tramway No. 3B (1·75 chains in length whereof the whole will be single line) commencing by a junction with Tramway No. 3 in Mersey Street at a point 18 yards measured in a north-easterly direction from the junction of Gas Street and Mersey Street passing thence in a north-easterly direction along Mersey Street and terminating at the south-west corner of Hall Street.

Tramway No. 3C (5·45 chains in length whereof the whole will be single line) commencing by a junction with Tramway No. 3 in Academy Street 58 yards measured in a south-easterly direction from the junction at Academy Street with Buttermarket Street passing thence along the new street now being constructed by the Corporation by Chrimes' Yard to Bank Street terminating at a point on the new street 14 yards measured due east from the south-western corner of Chrimes' Yard.

Provided that Tramway No. 3C shall not be constructed unless and until the roadway be widened so as to allow a width of 9 feet 6 inches on either side between the kerb and the nearest rail of the tramway.

Tramway No. 3 will be laid as a single line throughout except between the points herein-after specified where it will be double :—

In Mersey Street from a point 40 yards to the south-west of Litton's Row to a point 8 yards north-east of Rose and Crown Street.

Tramway No. 4 (2 furlongs 1·15 chains in length whereof 1 furlong 2·60 chains will be single line and 8·55 chains will be double line) commencing by a junction with Tramway No. 3 at its termination in Buttermarket Street passing thence in a northerly direction along Buttermarket Street Scotland Road (crossing Horsemarket Street) along Winwick Street and terminating therein at a point opposite the Bay Horse Inn 72 yards measured in a southerly direction from the south-west corner of St. John's Presbyterian Church.

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

Tramway No. 4 will be laid as a single line throughout except between the points in Scotland Road herein-after specified where it will be double :—

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—
Warrington Corporation.

(a) From the commencement of the Tramway to a point 25 yards south-westward of Town Hill.

(b) From a point opposite the Theatre Royal to a point in Winwick Street 56 yards in a southerly direction from the centre of the railway bridge at the central station.

Tramway No. 5 (7 furlongs 3·80 chains in length whereof 5 furlongs 6·30 chains will be single line and 1 furlong 7·50 chains will be double line) commencing by a junction with Tramway No. 4 at its termination in Winwick Street passing thence along Winwick Street Winwick Road and terminating in Winwick Road at the centre of Longford Bridge carrying the road over the brook at the borough boundary.

Tramway No. 5 will be laid as a single line throughout except between the points herein-after specified where it will be double :—

(a) In Winwick street from a point opposite Tanner's Lane to a point in Winwick Road 22 yards south of Silver Street.

(b) In Winwick Road from a point 27 yards north of Bluecoat Street to a point ten yards south of Stamford Street.

(c) In Winwick Road from a point opposite Longford Street to a point 5 yards north of Jockey Street.

(d) In Winwick Road from a point opposite Stanhope Street to a point 20 yards north of Corbett Street.

Tramway No. 6 (7 furlongs 6·45 chains in length whereof 5 furlongs 5·70 chains will be single line and 2 furlongs 0·75 chain will be double line) commencing by a junction with Tramway No. 3 at its termination in Buttermarket Street passing thence in an easterly direction along Buttermarket Street Irlam Street Church Street Manchester Road and terminating therein at a point opposite the western lodge of the cemetery 29 yards measured from the south-eastern boundary of Padgate Lane at its junction with Manchester Road.

Tramway No. 6 will be laid as a single line throughout except between the points herein-after specified where it will be double :—

(a) In Buttermarket Street from the commencement of the tramway to a point 38 yards west of Orford Street.

(b) In Buttermarket Street from a point 25 yards east of Dial Street to a point in Church Street 30 yards west of Fennell Street.

(c) In Church Street from a point 70 yards east of Howley Lane to a point 80 yards south of Gaskell Street.

(d) In Church Street from a point opposite Gaskell Street to a point in the Manchester Road 80 yards therefrom measured in a north-easterly direction.

(e) In Manchester Road between points respectively 33 yards south-west and 40 yards north-east of Glazebrook Street.

(f) In Manchester Road from a point 80 yards north-east of Marsh Street to the termination of the tramway herein-before described.

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 Vict.]
Act, 1900.

A.D. 1900.
*Warrington
Corporation.*

Tramway No. 7 (3 furlongs 3·25 chains in length whereof the whole will be double line) commencing by a junction with Tramway No. 6 at its termination in Manchester Road passing thence along Manchester Road and Padgate Lane and terminating in Padgate Lane at the centre of Padgate Bridge at the Warrington borough boundary.

Tramway No. 8 (2 furlongs 3·20 chains in length whereof 1 furlong and 4·70 chains will be single line and 1 furlong 8·50 chains will be double line) commencing by a junction with Tramway No. 6 at its termination in Manchester Road passing thence along Manchester Road and terminating therein at the centre of Bruche Bridge at the Warrington borough boundary.

Tramway No. 8 will be laid as a double line throughout except between the points in Manchester Road herein-after specified where it will be single :—

(a) Between points respectively 50 yards and 230 yards eastward of Padgate Lane.

(b) Between points respectively 396 yards and 253 yards westward of Bruche Bridge.

Tramway No. 9 (5·10 chains in length whereof the whole will be double line) commencing by a junction with Tramway No. 2 at its termination in Bridge Street passing thence in a south-easterly direction along Bridge Street the Warrington bridge over river Mersey St. James Street and terminating in St. James Street at a point 16 yards measured in a north-westerly direction from the corner of the building at the junction of St. James Street and Wilderspool Causeway.

Tramway No. 10 (7 furlongs 0·00 chain in length whereof the whole will be double line) commencing by a junction with Tramway No. 9 at its termination in St. James Street passing thence in a southerly direction along St. James Street Wilderspool Causeway (crossing the London and North Western Railway Warrington and Stockport line) the Old London Road (now being widened by the Corporation) and terminating therein at a point 90 yards measured in a northerly direction from the northern gates of the swing bridge carrying the Old London Road over the Manchester Ship Canal.

Provided that so much of Tramway No. 10 as is intended to be constructed in Wilderspool Causeway across the Warrington and Stockport line of the London and North Western Railway shall not be constructed without the previous consent in writing of the Board of Trade In the event of the Board of Trade at any time hereafter making an order that the road shall be carried over the said railway by means of a bridge then and in that case the Corporation shall construct such works as may be necessary for carrying the road over the railway according to plans and sections to be previously submitted to the London and North Western Railway Company and the Company shall pay to the Corporation one half of the cost and maintenance of such works Any difference as to the plans and sections the costs of the works or as to the manner in which and the conditions under which the same shall be carried out shall be determined by the Board of Trade.

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

Tramway No. 10A (1·80 chains in length whereof the whole will be double line) commencing by a junction with Tramway No. 10 at a point in Wilderspool Causeway 22 yards measured in a southerly direction from the corner of the building at the junction of Wilderspool Causeway and St. James Street and terminating by a junction with Tramway No. 11 herein-after described in St. James Street at a point 20 yards measured in a south-easterly direction from the corner of the building above described.

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Tramway No. 11 (1 mile 2 furlongs 8·70 chains in length, whereof the whole will be double line) commencing by a junction with Tramway No. 9 at its termination in St. James Street passing thence in an easterly direction along St. James Street and Knutsford Road and terminating in Knutsford Road 20 yards measured in a southerly direction from the centre of the bridge carrying the London and North Western Railway (Warrington and Stockport line) over the Knutsford Road.

7. The Tramways shall be constructed on a gauge of 4 feet 8½ inches or such other gauge as may from time to time be determined by the Board of Trade on the application of the Promoters. Provided always that in the event of the tramways being constructed on a less gauge than 4 feet 8½ inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramways beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed 6 feet 6 inches in width or such other width as may from time to time be prescribed by the Board of Trade.

Gauge and
width of
carriages.

8. In addition to the requirements of section 26 of the Tramways Act 1870 the Promoters shall lay before the Board of Trade a plan showing the proposed mode of constructing laying down maintaining and renewing the tramways and a statement of the materials intended to be used therein and the Promoters shall not commence the construction laying down maintenance or renewal of any of the tramways or part of any of the tramways respectively except for the purpose of necessary repairs until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and in places where the Promoters are not the sole road authority under the superintendence and to the reasonable satisfaction of the surveyor for the time being of the road authority as provided by section 26 of the said Act.

Provisions as
to construction
of tramways.

9. For the protection of the County Council of Lancashire (herein-after referred to as "the County Council") the following provisions shall apply and have effect (that is to say):—

For protection
of Lancashire
County
Council.

- (1) In constructing the tramway upon or over any bridge which is repairable by the inhabitants of the county of Lancaster or of any hundred therein or any parts of the approaches thereto the Corporation shall not alter or interfere with the structure of such bridge or approaches unless such alteration or interference with the construction of such bridge or approaches be absolutely necessary for the purpose of constructing the tramway and in the event of any such alteration or interference the

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
Act, 1900.

A.D. 1900.

*Warrington
Corporation.*

Corporation shall together with the prescribed notice submit to the County Council detailed drawings and specifications showing the proposed work as affecting such bridge or approaches and the Corporation shall so construct and maintain the tramway in the road over such bridge and forming the approaches thereto as not to injuriously affect such bridge or approaches and in the event of any injury being occasioned to such bridge or approaches or any part or parts thereof respectively by the construction of the tramway on or over the same (whether such injury shall occur either during or after construction or in affecting the maintenance of the tramway) the County Council after seven days written notice to the Corporation except in cases of emergency of their intention so to do may restore such bridge and approaches or the part or parts thereof which may be injured to as good a state as they were in before such injury was occasioned at the expense of the Corporation and the Corporation shall repay to the County Council all reasonable expenses which they may be put to in restoring such bridge and in maintaining and repairing so much of the road over such bridge and approaches as the Corporation are liable to repair under this Order and the County Council may recover from the Corporation all such expenses so due as aforesaid.

- (2) In the event of mechanical power being used on that portion of the tramway which is laid on any such bridge or approaches the County Council may execute such works as may be agreed between them and the Corporation (or in case of difference between them as may be determined by the Board of Trade) necessary for the strengthening of the fabric of such bridge provided such strengthening is needed for and by reason of the tramway apart from the ordinary traffic on the road in question and the County Council may execute all such agreed works at the expense of the Corporation and the County Council may recover from the Corporation all moneys reasonably expended by them in the execution of such works as aforesaid. If it becomes necessary for effecting such strengthening that the working of any portion of the tramway be wholly or in part stopped or delayed and the County Council give the Corporation three clear days notice in writing requiring such stoppage or delay the working of such portion of the tramway shall be stopped or delayed accordingly but only for so long as may be necessary for effecting such strengthening and the County Council shall not be liable for any claims damages or expenses in respect of such stoppage or delay.
- (3) If any such bridge as aforesaid upon or along which the tramway is laid be altered widened or rebuilt by the County Council the County Council may require the Corporation to alter the tramway in such manner as the circumstances of the case may reasonably require. Provided that it shall be lawful for but not binding on the Corporation to contribute such sum as may be mutually agreed upon between the Corporation and the County Council towards the expenses of altering widening or rebuilding any of such bridges as aforesaid.

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
Act, 1900.

- (4) The Corporation shall not without the consent in writing of the County Council (which consent shall not be unreasonably withheld) place erect or attach any post or other support for any wire on or to the structure of any such bridge as aforesaid and shall on receiving three months notice in writing (which notice shall not be given unreasonably) remove any post or support which shall be so placed erected or attached as aforesaid. A.D. 1900.
Warrington Corporation.
- (5) For the purposes of this section the expression "the tramway" shall include posts cables and all other electrical appliances connected with or used with the tramway lines.
- (6) The Corporation shall at their own expense pave so much of any main road whereon or over which any tramways authorised by this Order are laid as lies between the rails and as extends eighteen inches beyond the rails of and on each side of such rails with granite cubes or setts or such other paving as the surveyor of the County Council may approve.
- (7) If any question (except such as is to be determined by the Board of Trade as herein-before provided) arises under this section between the Corporation and the County Council that question shall be referred to arbitration under this Order.

10. The following provisions for the protection of the London and North Western Railway Company (herein-after referred to as "the North Western Company") shall apply and have effect:— For protection of London and North Western Railway Company as to level crossing.

- (1) The Promoters shall construct Tramway No. 10 and the works in connection therewith by this Act authorised so far as the same cross on the level the railway or works of the North Western Company in the line shown upon the deposited plans and according to plans to be reasonably approved by the principal engineer for the time being of the North Western Company (herein-after referred to as "the said principal engineer") and so as in no way to obstruct impede or interfere with the free and uninterrupted and safe use of the said railway of the North Western Company or with the traffic thereon and if any such obstruction or interference shall be caused or take place the promoters shall pay to the North Western Company full compensation in respect thereof:
- (2) The said Tramway No. 10 at the said level crossing shall be maintained and kept in constant and efficient repair to the reasonable satisfaction of such principal engineer and by and at the cost of the Promoters:
- (3) The carriages used on the said Tramway No. 10 shall not be stopped on or otherwise allowed to interfere with or obstruct the traffic of the North Western Company on the said level crossing and the traffic of the North Western Company shall at all times have precedence of the traffic on the said Tramway No. 10 which traffic shall be subject to such rules and regulations relating thereto as may from time to time be approved by the North Western Company any difference as to such rules and regulations to be determined by the Board of Trade:

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- (4) If by reason of the construction of the said portion of Tramway No. 10 hereby authorised it shall become necessary to add to or to alter the signal or signals upon the said railway of the North Western Company the same shall be so added to or altered by the North Western Company and the reasonable expense thereof shall be repaid to that Company by the Promoters :
- (5) The said portion of Tramway No. 10 and all works necessary or incident to the construction thereof or affecting the property or works of the North Western Company shall be executed by and in all things at the expense of the Promoters and under the superintendence and to the reasonable satisfaction of the said principal engineer :
- (6) During the construction of the said portion of Tramway No. 10 across the railway property and works of the North Western Company the Promoters shall bear and on demand pay to that Company all expenses of employment by them of a sufficient number of inspectors or watchmen to be appointed by that Company for watching their railway and the works thereof with reference to and during the execution of the intended works and for preventing as far as may be all interference obstruction danger and accident which may arise from any of the operations or from the acts or defaults of the Promoters or their contractors or any person or persons in the employment of the Company or their contractors with reference thereto or otherwise :
- (7) The Promoters shall pay to the North Western Company any extra cost of the maintenance of the permanent way which may be occasioned to that Company by reason of the said crossing of Tramway No. 10 :
- (8) Notwithstanding anything in this Order contained the Promoters shall be responsible for and make good to the North Western Company all costs losses damages and expenses which may be occasioned to that Company or to any of their railways works or property or to the traffic thereon or otherwise in the construction of Tramway No. 10 and the works in connection therewith or by any act or omission of the Promoters in working the said tramway :
- (9) If any difference shall arise between the respective engineers of the Promoters and the North Western Company as to the reasonableness of the plans herein-before provided for such difference shall be referred to and be determined by an engineer to be mutually nominated by such respective engineers or failing agreement to be appointed by the Board of Trade on the application of the Promoters or the North Western Company :
- (10) The Promoters and the North Western Company may agree for any variation or alteration in the works in this section provided for or in the manner in which the same shall be executed.

For protection
of London and
North Western
Railway
Company as to
bridges.

11. In constructing and maintaining the tramways where the same are intended to cross any bridge carrying any road over any of the railways of the London and North Western Railway Company (herein-after referred to

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as "the Railway Company") or to pass under any railway bridge of the Railway Company the following provisions shall have full force and effect and be binding upon the Promoters :—

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- (1) The Promoters shall not in any way vary alter or interfere with the structure of any such bridge or the approaches thereto and they shall so construct and maintain the tramway and works over such bridge and approaches or under such bridge as the case may be as not injuriously to affect the same.
- (2) In the event of any injury being caused to such bridge or approaches by the construction maintenance repairing use or removal of the said tramway and works the Railway Company may at the expense of the Promoters restore such bridge and approaches or the part or parts thereof which may be injured to as good a state and condition as they were in before such injury was occasioned and the Promoters shall indemnify the Railway Company against all sums costs and expenses which they may pay or be put to in repairing or maintaining so much of the road over such bridge or approaches as the Promoters are liable to maintain and repair under section 28 of the Tramways Act 1870 and the Railway Company may recover from the Promoters all such sums costs and expenses.
- (3) Whenever and so often as the Railway Company shall require to widen lengthen strengthen reconstruct alter or repair any such bridge or approaches or to widen or alter their railways thereunder or to lift or support any such bridge or approaches owing to the subsidence thereof caused by the minerals thereunder having been or being worked or gotten and shall find it necessary for effecting any of such purposes that the working and user of the tramway over any such bridge or approaches shall be wholly or partially stopped or delayed or that the tramway should be temporarily diverted or be wholly or in part taken up or removed and shall except in case of emergency give to the Promoters seven clear days notice in writing requiring such stoppage delay or diversion taking up or removal the working and user of such tramway shall be stopped or delayed or the said tramway shall be diverted or taken up or removed accordingly at the expense of the Promoters and under the superintendence of their engineer if such engineer give such superintendence but only for so long as the Railway Company may find to be absolutely necessary for effecting such purposes and without their being liable for any compensation claims demands damages costs and expenses for or in respect of such stoppage or delay or in any way relating thereto.

And in case the principal engineer of the Railway Company shall be of opinion that any such strengthening reconstruction or alteration is desirable or necessary owing to the carriages or other vehicles used on any such tramway being or being intended to be moved by steam or any mechanical power such strengthening reconstruction or alteration shall be effected in all things at the expense of the Promoters who

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shall also pay to the Railway Company any additional expense which they may incur or be put to in effecting any such strengthening reconstruction or alteration or any widening lengthening repairs lifting or supporting by reason of the existence of the tramways or any of the works connected therewith.

- (4) All works which may be necessary in constructing and maintaining any tramway or for working the Promoters' tramways by mechanical power over any such bridge and approaches shall be constructed and maintained in all things at the expense of the Promoters and to the reasonable satisfaction of the principal engineer of the Railway Company or in case of difference of an engineer to be appointed by the Board of Trade on the application of either the Railway Company or the Promoters.
- (5) With respect to Tramway No. 1 where the same will pass along Liverpool Road or Sankey Street no stopping place shall be made within thirty yards of the entrance of the Company's goods station and no tramcar or other vehicle or carriage used on the tramway shall be stopped or permitted to be stopped within such distance except for and only for so long as shall be necessary for the purposes of discharging and taking up passengers. The Company may at the cost of the Corporation remove so much of the wall on the northern side of Liverpool Road as extends for a distance of thirty-five yards west of the entrance to the said goods station so as to allow a clear view of the tramway being obtained from the approach to the said goods station and may at the like cost erect in lieu thereof an open fence or railing.

For pro-
tection of
Manchester
Ship Canal.

12. For the protection of the Manchester Ship Canal Company (herein-after referred to as "the Company") the following provisions shall have effect unless otherwise agreed in writing between the Promoters and the Company (that is to say):—

- (1) Notwithstanding anything in this Order contained the Promoters shall not without the written consent of the Company in any way interfere with the structure of the bridge known as the Black Bear Bridge which carries the Knutsford Road over the Runcorn and Latchford Canal belonging to the Company.
- (2) Any works required for the construction of the tramways over the said Black Bear Bridge shall be executed by and in all things at the expense of the Promoters in accordance with plans and sections to be previously submitted to and approved of in writing by the chief engineer for the time being of the Company and to his reasonable satisfaction.
- (3) The Promoters shall be responsible for and make good all damage of whatsoever description occasioned or done either directly or indirectly to the structure of the said Black Bear Bridge by the construction maintenance or working of the tramways.

Warrington Corporation.

13. The rails of the tramways shall be such as the Board of Trade may approve.

Rails of tramways.

14. The Promoters shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and if the Promoters at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds for every day on which such non-compliance continues In case it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the borough that the Promoters have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Promoters to such penalty or penalties in respect thereof as is or are by this section imposed.

Penalty for not maintaining rails and road in good condition.

15. If the Promoters or any other road authority hereafter alter the level of any road along or across which any part of the tramways is laid or authorised to be laid the Promoters shall alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered.

Tramways to be kept on level of surface of road.

16. The Promoters may with the consent of the Board of Trade and subject in places where the Promoters may not be the road authority to the approval of that authority lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of the tramways and if at any time after the construction of the tramways the road in which the same or any part thereof is laid shall be altered in level or widened the Promoters may with the like consent and approval take up and remove such tramway or part thereof and reconstruct the same in such position as they may think fit Provided that the uppermost surface thereof shall be on a level with the surface of the road as altered or widened Provided further that in the exercise of the powers of this section no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one-third of the owners and occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Promoters within three weeks after receiving from the Promoters notice of their intention express their objection thereto.

Alteration of tramways.

17. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Promoters shall and they are hereby required to construct a cross-over or cross-overs

Cross-overs to be constructed in certain cases.

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Additional
cross-overs
&c. may be
made where
necessary.

18. The Promoters may subject to the provisions of this Order from time to time make maintain alter and remove all such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or any of them or for providing access to any stables or carriage-houses sheds or works but in places where the Promoters may not be the road authority the same shall only be made subject to the approval of that authority Provided that in the construction of any such works no rail shall be so laid that a less space than nine feet six inches shall intervene between it and the outside of the footpath on either side of the road if one-third of the owners or one-third of the occupiers of the premises abutting on the place where such less space shall intervene shall by writing under their hands addressed and delivered to the Promoters within three weeks after receiving from the Promoters notice of their intention express their objection thereto.

Temporary
tramways
may be made
when
necessary.

19. Where by reason of the execution of any work affecting the surface or soil of any road along which the tramways are laid it is in the opinion of the Promoters necessary or expedient temporarily to remove or discontinue the use of such tramways or any part thereof the Promoters may construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of the tramway so removed or discontinued subject in places in which the Promoters may not be the road authority to the approval of the road authority and to such regulations as that authority may make.

Application of
road materials
excavated in
construction of
Promoters'
works.

20. Any paving metalling or material excavated by the Promoters in the construction of any works under the authority of this Order from any road under their jurisdiction or control shall absolutely vest in and belong to the Promoters and may be dealt with removed and disposed of by them in such manner as they may think fit.

Tramways not to
be opened until
certified by the
Board of Trade.

21. The tramways shall not be opened for public traffic until the same have been inspected and certified to be fit for such traffic by the Board of Trade.

Motive Power.

Provisions as
to motive
power.

22. The carriages used on the tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say) :—

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade nor unless and until the passing-places are of a length satisfactory to the Board of Trade.
- (2) The Board of Trade shall make regulations (in this Order referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Order of mechanical power and for regulating the use of electrical power.

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(3) The Promoters or any company or person using any mechanical power on the tramways authorised by this Order contrary to the provisions of this Order or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof.

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(4) The Board of Trade if they are of opinion—

(a) that the Promoters or such company or person have or has made default in complying with the provisions of this Order or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(b) that the use of mechanical power as authorised under this Order is a danger to the passengers or the public;

may by order either direct the Promoters or such company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Promoters or such company or person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

23. For the purpose of working the tramways by electrical power the Promoters and their lessees may subject to the provisions of this Order erect construct maintain and use on any lands taken or appropriated under the powers of this Order engines batteries dynamos and accumulators with all necessary and proper machinery and works and may construct erect lay down make and maintain on above or below the surface of any street or road posts brackets electric conductors wires apparatus subways tunnels cables tubes and openings and may for that purpose open and break up any road and any sewers drains water or gas pipes tubes wires telephonic and telegraphic apparatus therein or thereunder.

Works for applying electrical power.

24. All works to be executed by the Promoters in any road for working the tramways by mechanical power in pursuance of the powers of this Order shall be deemed to be works of a tramway subject in all respects (save as by this Order otherwise expressly provided) to the provisions of section 30 of the Tramways Act 1870 as if they had been therein expressly mentioned.

Mechanical power works to be subject to section 30 of Tramways Act 1870.

25. Subject to the provisions of this Order the Board of Trade may make byelaws with regard to any part of the tramways upon which mechanical power may be used for all or any of the following purposes that is to say :—

Byelaws.

For regulating the use of any bell whistle or other warning apparatus fixed to the engines or carriages ;

For regulating the emission of smoke or steam from engines used on the tramways ;

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety ;

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For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages ;
For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere:
Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Order shall be liable to a penalty not exceeding forty shillings.

Amendment of
Tramways
Act 1870 as
to byelaws by
local authority.

26. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaw sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which engines are to be driven or propelled on the tramways under the authority of this Order but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised.

Special pro-
visions as to
use of
electrical
power.

27. The following provisions shall apply to the use of electrical power under this Order unless such power is entirely contained in and carried along with the carriages :—

- (1) The Promoters shall employ either insulated returns or uninsulated metallic returns of low resistance ;
- (2) The Promoters shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus ;
- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return ;
- (4) The Promoters shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Promoters either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing

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such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking; A.D. 1900.

Warrington Corporation.

(5) At the expiration of two years from the passing of the Act confirming this Order the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents;

(6) If any difference arises between the Promoters and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be;

(7) The expression "the Promoters" in this section shall include their lessees and any person owning working or running carriages over any tramway of the Promoters.

28.—(a) Notwithstanding anything in this Order contained if any of the works authorised to be executed by this Order involves or is likely to involve any alteration of any telegraphic line belonging to or used by the Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration. For protection of Postmaster-General.

(b) In the event of the tramways or any part thereof being worked by electricity the following provisions shall have effect:—

(1) The Promoters shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by Her Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein. If any question arises as to whether the Promoters have constructed their electric lines or other works or work their undertaking in contravention of this subsection such question shall be determined by arbitration and the Promoters shall be bound to make any alterations in or additions to their system which may be directed by the arbitrator.

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Promoters of their electric lines and works or by the working of the undertaking of the Promoters the Promoters shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection.

(3)—(a) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any

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part of a telegraphic line of the Postmaster-General (other than repairs or the laying of lines crossing the line of the Postmaster-General at right angles at the point of shortest distance and so continuing for a distance of six feet on each side of such point) the Promoters or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Promoters and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work :

(b) Any difference which arises between the Postmaster-General and the Promoters or their agents with respect to any requirements so made shall be determined by arbitration.

- (4) In the event of any contravention of or wilful non-compliance with this section by the Promoters or their agents the Promoters shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues.
- (5) Provided that nothing in this section shall subject the Promoters or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of the act or execution of the work was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice.
- (6) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work.
- (7) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Order.
- (8) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882.
- (9) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Promoters or their agents were a company within the meaning of that Act.
- (10) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the

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Promoters by indictment action or otherwise in relation to any of the matters aforesaid. A.D. 1900.

(11) In this section the expression "the Promoters" includes their lessees and any person owning working or running carriages over the tramways (or any part thereof) of the Promoters. *Warrington Corporation.*

Traffic upon Tramways.

29. The tramways may be used for the purpose of conveying passengers animals goods minerals and parcels. *Traffic upon tramways.*

30. The Promoters' lessees shall not be bound to carry unless they think fit any animals goods minerals or parcels other than passengers' luggage not exceeding twenty-eight pounds in weight. *Promoters not bound to carry animals goods &c.*

31. In case the Promoters' lessees carry animals goods minerals or parcels they may and when required by the Promoters shall carry the same in separate carriages or separate parts of carriages set apart for that purpose Provided that this provision shall not apply to the carriage of passengers' luggage. *Provisions as to carriage of animals goods &c.*

32. The Promoters' lessees may with the consent of the Board of Trade from time to time enter into and fulfil contracts and agreements with any company person or local authority lawfully working or using any neighbouring tramways and authorised to enter into such contracts and agreements for and in relation to the interchange accommodation and forwarding of carriages passengers and traffic on from or to any of such tramways on to or from the tramways and for and in relation to the use by the contracting parties or any or either of them of the whole or any part of their respective tramway undertakings or of any or either of them respectively. *Interchange of traffic.*

Rates

33. The Promoters' lessees may demand and take for every passenger travelling upon the tramways or any part thereof including every expense incidental to such conveyance any rates or charges not exceeding one penny per mile (and for this purpose a fraction of a mile beyond an integral number of miles shall be deemed a mile) but in no case shall the Promoters' lessees be bound to charge a less sum than twopence. *Passengers' fares.*

34. The Promoters or any person working or using the tramways shall not take or demand on Sunday or any public holiday any higher rates or charges than those levied by them on ordinary week days. *As to fares on Sundays and holidays.*

35. Every passenger travelling upon the tramways may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof Provided that all such personal luggage be carried by hand and at the responsibility of the passenger and do not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers. *Passengers' luggage.*

36.—(1) The Promoters' lessees at all times after the opening of the tramways for public traffic shall and they are hereby required to run a proper and *Cheap fares for labouring classes.*

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sufficient service of carriages for artizans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance On Saturdays the Promoters' lessees in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Promoters' lessees to provide such service as may appear to the Board to be reasonable.

(3) The Promoters' lessees shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

Rates and
charges for
animals
goods &c.

37. The Promoters' lessees may demand and take in respect of any animals goods minerals or parcels conveyed by them on the Tramways including every expense incidental to such conveyance any rates or charges not exceeding the rates and charges specified in the schedule to this Order annexed subject to the regulations in that behalf therein contained.

Payment of
rates.

38. The rates and charges by this Order authorized shall be paid to such persons and at such places upon or near to the tramways and in such manner and under such regulations as the Promoters' lessees may by notice to be annexed to the list of rates and charges appoint.

Periodical
revision of
rates.

39. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by the Promoters or by their lessees or by twenty inhabitant ratepayers of the borough that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if such referee reports that it has been proved to his satisfaction that all or any of the rates or charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges by this Order authorised Provided also that a copy of this section shall be annexed to every table or list of rates published or exhibited by the Promoters or their lessees.

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Act, 1900.

A.D. 1900.

Miscellaneous.

Warrington Corporation.

40. Notwithstanding anything in the Tramways Act 1870 to the contrary the Corporation may place and run carriages on and may work and may demand and take rates and charges in respect of the tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks horses harness engines machinery apparatus steam cable electrical and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the said tramways by animal or mechanical power and in such case the several provisions in this Order contained relating to the working of the tramways and the taking of rates and charges therefor shall extend and apply mutatis mutandis to and in relation to the Corporation and the Corporation may work such tramways and demand and recover such rates and charges accordingly but nothing in this section shall empower the Corporation to construct any station for generating electrical power nor to create or permit a nuisance.

Power to Corporation to work tramways.

41. The regulations authorised by the Tramways Act 1870 to be made by the Promoters of any tramway and their lessees may with respect to the tramways or portions of tramways for the time being belonging to and worked by the Corporation be made by the Corporation alone.

Regulations.

42. The Promoters may with the consent of the Board of Trade from time to time but subject to the provisions of this Order enter into and carry into effect agreements with any neighbouring local authority authorised to enter into such agreements or with any company or person working tramways in any neighbouring district for the effective or more effective or economical working of the tramways within the borough by combination with such neighbouring authority or company and may in pursuance of any such agreement grant running powers over the tramways of the Promoters or run the tramcars belonging to the Promoters outside the borough and may demand and take rates and charges in respect thereof.

Power to combine with other authorities.

43. The Promoters may with the consent of the Board of Trade from time to time but subject to the provisions of this Order enter into and fulfil contracts and agreements with any local authority or person authorised to enter into such contracts or agreements for and in relation to the construction or working of the whole or any part of the tramways or with respect to the receiving or forwarding of any animals goods minerals or parcels or the fixing collecting and apportionment of rates charges and other receipts and may confirm any such contracts and agreements which may be entered into before the confirmation of this Order.

Working agreements.

44. The Promoters may include in any mortgage of the local rate made by them under section 20 of the Tramways Act 1870 the moneys coming to them out of the rents reserved under any lease made under the authority of this Order and the rates charges and sums authorised to be taken or received by them under the provisions of this Order.

Mortgages to include rents and rates.

**[Ch. cci.] Tramways Orders Confirmation (No. 4) [63 & 64 Vict.]
Act, 1900.**

A.D. 1900.

Warrington Corporation.

Orders &c. of the Board of Trade.

45. All orders regulations and byelaws made and consents and certificates given by the Board of Trade under the authority of this Order shall be signed by a secretary or an assistant secretary of the Board and when purporting to be so signed the same shall be deemed to be duly made in accordance with the provisions of this Order and to be orders and regulations within the meaning of the Documentary Evidence Acts 1868 and 1882 and may be proved accordingly.

Recovery of penalties.

46. Any penalty under this Order or under any byelaws or regulations made under this Order may be recovered in manner provided by the Summary Jurisdiction Acts.

Audit of accounts.

47. Sections 246 and 250 of the Public Health Act 1875 shall apply to the audit of the accounts of the receipts and expenditure of the Promoters and their officers with respect to the tramway as if such accounts related to receipts and expenditure under that Act.

Protection of local authority.

48. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 is hereby incorporated with this Order and in construing that section for the purposes of this Order the expression "this Act" where used in that section shall mean this Order.

Power to hold patents.

49. The Promoters may subject to the provisions of this Order (but only for the purposes of the undertaking and not so as to acquire any exclusive rights therein) acquire hold and use any patent or other rights and any licences to use patent rights relating to the construction or working of tramways or carriages used thereon.

Form and delivery of notices.

50. With respect to notices and to the delivery thereof by or to the Promoters the following provisions shall have effect (that is to say):—

- (1) Every notice shall be in writing and if given by the Promoters or by any local or road authority or company shall be signed by their clerk or secretary.
- (2) Any notice to be delivered by or to the Promoters to or by any body or any company or corporation may be delivered by being left at the principal office of that body company or corporation or at the office of the clerk to the Promoters as the case may be or by being sent by post in a registered letter addressed to their respective clerk or secretary at their principal office or to the clerk to the said Promoters.

Provisions as to arbitration.

51. Where under the provisions of the Tramways Act 1870 and this Order any matter in difference is referred to the arbitration of any person nominated by the Board of Trade the provisions of the Arbitration Act 1889 shall apply to every such arbitration and the decision of the arbitrator shall be final and conclusive and binding on all parties and the costs of and incidental to the arbitration and award shall if either party so require be taxed and settled as between the parties by any one of the taxing masters of the High Court and such fees may be taken in respect of the taxation as may be fixed in pursuance of the enactments relating to the fees to be demanded and taken in the offices of such masters and all those enactments including the enactments relating to

[63 & 64 VICT.] *Tramways Orders Confirmation (No. 4)* [Ch. cci.]
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the taking of fees by means of stamps shall extend to the fees in respect of the said taxation.

52. Nothing in this Order contained shall exempt the Promoters or any person using the tramways or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum rates of rates and charges authorised by this Order.

A.D. 1900.
—
Warrington Corporation.
Saving for
general Acts.

SCHEDULE.

TOLLS AND RATES FOR ANIMALS GOODS &c.

	Per Mile.	
	s.	d.
<i>Animals.</i>		
For every horse mule or other beast of draught or burden - per head	0	4
For every ox cow bull or head of cattle - - - - - „	0	3
For every calf pig sheep or other small animal - - - - - „	0	1½

Goods and Minerals.

For all coal coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways		
per ton	0	2
For all iron iron-ore pig-iron bar-iron rod-iron sheet-iron hoop-iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought iron not otherwise specifically classed herein and for heavy iron castings including railway chairs - per ton	0	2½
For all sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings - - - - - per ton	0	3
For cotton wools drugs and manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein - - - - - per ton	0	4
For every carriage of whatever description - - - - -	1	0

Parcels.

	Any Distance.	
	s.	d.
For any parcel not exceeding seven pounds in weight - - -	0	3
For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight - - - - -	0	5
For any parcel exceeding fourteen pounds and not exceeding twenty- eight pounds in weight - - - - -	0	7

[Ch. cci.] *Tramways Orders Confirmation (No. 4)* [63 & 64 VICT.]
Act, 1900.

A.D. 1900.

Warrington Corporation.

Any
Distance.

For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight	s.	d.
- - - - -	0	9

For any parcel exceeding fifty-six pounds in weight but not exceeding five hundred pounds in weight such sums as the person conveying the same may think fit.

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

Per Mile.
s. d.

For the Carriage of Single Articles of Great Weight.

For the carriage of any iron boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage exceeds four tons but does not exceed eight tons such sums as the person conveying the same may think fit not exceeding - - - - - per ton 2 0

For the carriage of any single piece of timber stone machinery or other single article the weight of which with the carriage exceeds eight tons such sum as the person conveying the same may think fit.

Regulations as to Rates.

For articles or animals conveyed on the tramways for a less distance than a mile rates and charges as for one mile may be demanded.

A fraction of a mile beyond an integral number of miles shall be deemed a mile.

For a fraction of a ton rates and charges may be demanded and taken according to the number of the quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton.

With respect to all articles except stone and timber the weight shall be determined according to the Imperial avoirdupois weight.

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity.

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T. DIGBY FIGOTT, Esq., C.B., the Queen's Printer of Acts of Parliament.

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A.D. 1900.
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Warrington Corporation.
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general Acts.

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For all coal coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways	per ton	0	2
For all iron iron-ore pig-iron bar-iron rod-iron sheet-iron hoop-iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for wrought iron not otherwise specifically classed herein and for heavy iron castings including railway chairs - per ton		0	2½
For all sugar grain corn flour hides dyewoods earthenware timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings - " " " " - per ton		0	3
For cotton wools drugs and manufactured goods and all other wares merchandise fish articles matters or things not otherwise specially classed herein - " " " " " " - per ton		0	4
For every carriage of whatever description - " " " " -		1	0

Any
Distance.

Parcels.

	s.	d.
For any parcel not exceeding seven pounds in weight - -	0	3
For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight - " " " " " " -	0	5
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